IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.101

C.P.(CAA)/75(AHM)2022 in
C.A.(CAA)/7(AHM)2022

Proceedings under Section 230-232

IN THE MATTER OF:

Aadarshini Construction Pvt Ltd **.....Applicants**
Dipali Organisor Pvt Ltd
S N Infraspace Pvt Ltd
S N Realties Pvt Ltd
S N Realty Construction Pvt Ltd
Sharanam Construction Pvt Ltd
Shaswat Realties Pvt Ltd
Shivalik Developers Pvt Ltd
Shivalik Home Services Pvt Ltd
Shivalik Infra-Projects Pvt Ltd
Shivalik Plaza Pvt Ltd
Shivalik Realty Sthaptya Pvt Ltd
Taral Properites Pvt Ltd
Shivalik Develpoers And Realty Pvt Ltd

Order delivered on: 17/03/2023

Coram:

Dr. Madan B. Gosavi, Hon'ble Member(J)
Mr.Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of the order. The order is pronounced in open Court vide separate sheet.

-SD-
KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-
DR. MADAN B. GOSAVI
MEMBER (JUDICIAL)

IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

C.P.(CAA)/75/NCLT/(AHM)/2022 in
C.A.(CAA)/7(AHM)/2022

[An Application filed under Sections 230-232 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and other applicable provisions of the Companies Act, 2013]

In the matter of

Aadarshini Construction Pvt. Ltd.
(CIN: U45201GJ2008PTC053265)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Jodhpur, Ahmedabad-380015, Gujarat. .....Transferor Company-1

Dipali Organisor Pvt. Ltd.
(CIN: U45201GJ2004PTC044411)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Opp. Satyagruh Chhavani, Ahmedabad-380015, Gujarat. .....Transferor Company-2

S N Infraspace Pvt. Ltd.
(CIN: U45202GJ2003PTC042726)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Opp. Satyagruh Chhavani, Ahmedabad-380015, Gujarat. .....Transferor Company-3

S N Realties Pvt. Ltd.
(CIN: U45200GJ2005PTC046957)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Jodhpur, Ahmedabad-380015, Gujarat. .....Transferor Company-4

S N Realty Construction Pvt. Ltd.
(CIN: U45200GJ2005PTC046981)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Opp. Satyagruh Chhavani, Ahmedabad-380015, Gujarat. .....Transferor Company-5

Sharanam Construction Pvt. Ltd.
(CIN: U45201GJ2003PTC042748)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Jodhpur, Ahmedabad-380015, Gujarat. .....Transferor Company-6

Shaswat Realties Pvt. Ltd.
(CIN: U45201GJ2004PTC044512)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Jodhpur, Ahmedabad-380015, Gujarat. .....Transferor Company-7

Shivalik Developers Pvt. Ltd.
(CIN: U45200GJ2006PTC049089)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Jodhpur, Ahmedabad-380015, Gujarat. ……Transferor Company-8

Shivalik Home Services Pvt. Ltd.
(Formerly known as Splendor Realty Private Limited)
(CIN: U70101GJ2012PTC072679)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Opp. Satyagruh Chhavani, Ahmedabad-380015, Gujarat. …..Transferor Company-9

Shivalik Infra-Projects Pvt. Ltd.
(CIN: U45209GJ2008PTC053044)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Opp. Satyagruh Chhavani, Ahmedabad-380015, Gujarat. …..Transferor Company-10

Shivalik Plaza Pvt. Ltd.
(CIN: U45201GJ2008PTC053161)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Opp. Satyagruh Chhavani, Ahmedabad-380015, Gujarat 380015. …..Transferor Company-11

Shivalik Realty Sthaptya Pvt. Ltd.
(CIN: U45201GJ2007PTC051859)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Opp. Satyagruh Chhavani, Ahmedabad-380015, Gujarat.

.....Transferor Company-12

Taral Properties Pvt. Ltd.
(CIN: U45203GJ2003PTC042727)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Jodhpur, Ahmedabad-380015, Gujarat.

.....Transferor Company-13

Shivalik Developers and Realty Pvt. Ltd. (Formerly Known as Shrushti Organisors Private Limited)
(CIN: U45201GJ2004PTC045025)

A private company incorporated under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society, Nr. Satellite Police Station, Opp. Satyagruh Chhavani, Ahmedabad-380015, Gujarat.

..... Transferee Company

Order delivered on 17.03.2023

Coram: Dr. Madan B. Gosavi, Member (Judicial)
Kaushalendra Kumar Singh, Member (Technical)

Appearance:

For the Applicant	:	Mr.Kiran Shah, FCA, Ms. Nupur Shah, Advocate and Mr. Bhavesh Thakkar, PCS. PCS, Mr. Bhavesh Thakkar.
For the RD	:	Mr. Liladhar Sharma, Assistant Director.
For the Income Tax	:	Ms. Pankti Shah, Advocate for Ms. Maithili Mehta, Advocate.

ORDER

1. The present joint petition has been filed by the Petitioner Companies under Sections 230-232 of the Companies Act, 2013 ("Act") read with Companies (Compromise, Arrangement and Amalgamations) Rules, 2016 (hereinafter referred to as "CAA Rules") seeking approval of the Scheme of Amalgamation of M/s. Aadarshini Construction Private Limited (Transferor Company-1), M/s. Dipali Organisor Private Limited (Transferor Company-2), M/s. S N Infraspace Private Limited (Transferor Company-3), M/s. S N Realties Private Limited (Transferor Company-4), M/s. S N Realty Construction Private Limited (Transferor Company-5), M/s. Sharanam Construction Private Limited (Transferor Company-6), M/s. Shaswat Realties Private Limited (Transferor Company-7), M/s. Shivalik Developers Private Limited (Transferor Company-8), M/s. Shivalik Home Services Private Limited (Formerly Known as Splendor Realty Private Limited) (Transferor Company-9), M/s. Shivalik Infra-Projects Private Limited (Transferor Company-10), M/s. Shivalik Plaza Private Limited (Petitioner/Transferor Company-11), M/s. Shivalik Realty Sthaptya Private Limited (Transferor Company-12) and M/s. Taral Properties Private Limited (Transferor Company-13) (collectively hereinafter referred to as **Transferor Companies'**) with

M/s. Shivalik Developers And Realty Private Limited (Formerly Known as M/s. Shrushti Organisors Private Limited) (Transferee Company') (collectively referred to as **'Petitioner Companies'**) and their respective shareholders and creditors with effect from 1st April 2021, being the Appointed Date as mentioned in the Scheme. This Petition was e-filed on 17.11.2022 and physical copy thereof was filed on 18.11.2022.

2. An Affidavit in support of the above joint petition has been sworn by Mr. Taral Shah and Chitrak Shah on behalf of the Petitioner Companies who is the Director/Authorized Representative of the Petitioner Companies, and the same is annexed with the application. The above-named authorized representative for the Petitioner Companies has been authorized vide Board Resolutions dated 02.08.2021 of the Petitioner Companies.

3. The Petitioner Companies had filed a joint Company Application before this Tribunal being C.A.(CAA)/7(AHM)/2022, inter alia, sought dispensation of the meetings of Equity Shareholders and Unsecured Creditors of all the Transferor Companies and Transferee Company as well as dispensation of meetings of the Secured Creditors of Transferor Companies 3 and 6. It was submitted that as there are no Secured Creditors in Transferor Companies 1,2,4,5,7,8,9,10,11,12 and 13 nor in the Transferee Company, the question of convening meetings for the Secured Creditors of Transferor Companies 1,2,4,5,7,8,9,10,11,12 and 13 and the Transferee Company does not arise.

4. By an order dated 06.09.2022 made in C.A.(CAA)/7(AHM)/2022, this Tribunal dispensed with convening

and holding of meetings of Equity Shareholders and Unsecured Creditors of all the Applicant Companies as well as the Secured Creditors of Applicant Companies 3 and 6.

5. By the order dated 06.09.2022, passed in C.A.(CAA)/7(AHM)/2022, this Tribunal had further directed the Applicant Companies to serve Notice of the Scheme in compliance with Section 230(5) of the Companies Act, 2013 in the Form 'CAA-3' along with disclosures mentioned under Rule 6 to (i) the Central Government through the Regional Director, North Western Region, (ii) the Registrar of Companies, Gujarat, (iii) the Income Tax authorities concerned and (iv) Official Liquidator (in respect of Amalgamating Companies) stating that representations, if any, to be made within a period of 30 days from the date of receipt of such notice, and in case no representation is received by this Tribunal within the stipulated period of 30 days, it should be presumed that the authorities have no representation to make.

6. In compliance with the order dated 06.09.2022, the Petitioner Companies have served notices to the Central Government through the Regional Director, North-Western Region on 19.09.2022, the Registrar of Companies, Gujarat on 19.09.2022, the concerned Income Tax Authorities concerned on 15.09.2022 and the Official Liquidator (in respect of the Transferor Companies) on 19.09.2022. The Petitioner Companies also filed a respective affidavit of service of notice to the all statutory authorities dated 15.11.2022.

7. The Petitioner Companies have jointly filed the present Company Petition being C.P.(CAA)/75/NCLT/(AHM)/2022 before this Tribunal seeking sanction of the Scheme.

8. This Tribunal, by order dated 11.01.2023, admitted the aforesaid petition and fixed for final hearing on 21.02.2023 and directed issuance of notices to Regional Director, Registrar of Companies, Official Liquidator and Income Tax Authority, informing the date of hearing. The Tribunal also directed the publication of notice of hearing of the petition in **"Financial Express"** in English and in Vernacular language both in Ahmedabad Edition not less than ten days before fixed date of hearing, calling for objections, if any, on or before the date of hearing.

9. Pursuant to the order dated 11.01.2023 passed by this Hon'ble Tribunal, the Petitioner Companies have published the joint notice of hearing of the petition in **"Financial Express"** in English on 17.01.2023 and in Gujarati language on 18.01.2023 in Ahmedabad Edition both having circulation in Gujarat. The notice in respect of hearing of the Company Petition was served upon all concerned statutory authorities. The affidavit of service, on behalf of the Petitioner Companies dated 24.01.2023, have been filed confirming the publication of the notice in the newspapers as directed and also the notice of hearing of the petitions being served upon the concerned statutory authorities.

10. In response to the notice under Section 230(5) of the Act the Regional Director (RD) filed a common report along with the report of the Registrar of Companies (ROC), wherein there is no adverse observation was made by RD and ROC in respect of sanctioning and approving the proposed Scheme of Amalgamation. However, the RD has prayed for directions to the petitioner companies to comply with Section 232(3)(i) of the Companies Act. Further, it has been observed

by the RD that as confirmed by the RoC that there are no complaints against the Petitioner Companies and there is no complaint / representation against the Scheme of Amalgamation of the Petitioner Companies.

11. In response to the notice under Section 230(5) of the Act, the RD and ROC have filed their common report dated 28.11.2022 and made some observations which are as under:

(i) In para 2(f), the RD Office observed *"that the present authorized, issued, subscribed and paid up share capital of the petitioner Transferee Company namely Shivalik Developers And Realty Private Limited, and as per the consideration provided in the scheme, further increase in authorized share capital of the Petitioner Transferee Company will be required since the authorized share capital of the Transferee Company is not sufficient to issue and allot new shares of the Transferee Company to the Shareholders of the petitioner transferor Companies through this scheme".*

"In this regard, the scheme has provision at para 12.1.2 to increase the authorized capital of the transferee company up to Rs. 29,50,00,000/- after consideration of para 12.1.1 of the scheme".

"The Hon'ble NCLT may therefore be pleased to direct the petitioner transferee company to Comply with the provisions of section 61 of the Companies Act, 2013 and also as to the payment of the stamp duty, registration fees etc. and file the relevant e-form with respective Registrar of Companies".

In response to this observation, the Petitioner Companies in their clarificatory affidavit cum undertaking have stated that the authorized capital of the Transferor Companies amounting to Rs. 27,00,000/- will be added in the authorized share capital of the Transferee Company and the consolidated authorized share capital of the Transferee Company will be arrived to Rs. 28,00,000/- without making any additional fees as per the provision of the section 232(3)(i) of the Companies Act, 2013. And as per the clause 12.1.2 of the Scheme of Amalgamation, the authorized share capital of the Transferee Company will be increased from Rs.28,00,000/- (Rupees Twenty Eight Lakhs only) divided into 2,80,000 (Two Lakhs Eighty Thousand) equity shares of Rs. 10/- (Rupees Ten only) each, to Rs. 29,50,00,000/- (Rupees Twenty Nine Crores Fifty Lakhs only) divided into 2,95,00,000 (Two Crores Ninety Five Lakhs) equity shares of Rs. 10/- (Rupees Ten only) to each without any further act, instrument or deed on the part of the Transferee Company except the payment of fees as applicable. The Transferee Company will pay the difference/balance amount of fees, if any, which is payable on the enhanced Authorized Share Capital and the fees which have already been paid by all the Petitioner Companies at the time of registration/ increase in authorized share capital, as the case may be.

The Petitioner Companies in their clarificatory affidavit cum undertaking have also stated that Transferee Company will pay the difference/balance amount of fees, if any, which is payable on the enhanced Authorized Share Capital and the fees

which have already been paid by all the Petitioner Companies at the time of registration/ increase in authorized share capital as stated in the para 12.1.1 and 12.1.2. and also state and undertake that under the single window principle, no separate procedure is required to be followed under section 61 of the Companies Act, 2013. However, the Petitioner Companies undertake to file the relevant Form No. SH-7 with the MCA after the Consolidation of Authorised Share Capital of the Transferor Companies into the Transferee Company.

(ii) That in para 2(i)(i) ROC Office has stated that *"as per the para 2(xi) of the order dated 06.09.2022 passed by the Hon'ble NCLT, it is mentioned therein in respect of S N Realties Private Limited (Transferor Company No. 4), and Taral Properties Private Limited (Transferor Company No. 13) that there are Nil secured Creditors. Whereas, as per the Index of Charge available under the MCA's website, the aforesaid Companies does have following secured Charges:*

Name of Company	*Name of Charge Holder*	*Charge ID/ SRN*	*Date of Creation*	*Amount (In Rs)*
S N Realties Private Limited (Transferor Company No.4)	*UTI Bank Limited*	*10006881/ A01392117*	*02.06.2006*	*1,35,00,000*
Taral Properties Private Limited (Transferor	*IDBI Bank Limited*	*10483466/ B98846744*	*17.02.2014*	*20,00,00,000*

Company No. 13				

The Transferee Company vide letter dated 30.09.2022 has clarified that the loan/ overdraft facility of availed from UTI Bank Limited and IDBI Bank Limited have been repaid in fully by both the Companies and they are awaiting NO Objection from Bank which is required to be attached the Charge Satisfaction form CHG-4. Once, they received the Copy of NOC from Bank then they will file the same with MCA21 portal in due time."

In response to this observation, the Petitioner Companies in their clarificatory affidavit cum undertaking have stated that the S N Realties Private Limited (Transferor Company No. 4), has received the **No Objection** from UTI Bank Limited (Now, Axis Bank Limited) and the Company has filed Form No. CHG-8 vide SRN: AA1210411 for condonation of delay in the filing of form which is delayed due to non-functioning of MCA21 V3 site which was approved and Form No. CHG-4 vide SRN: AA1191597 for satisfaction of charge, the form is pending for approval.

The Petitioner Companies submitted that such loans/financial assistance have been obtained by the Petitioner/Transferor Company-3 from the said banks/financial institutions and the said banks/financial institutions have given their consent affidavit and same is filed with application the Taral Properties Private Limited (Transferor Company No. 13). That the Taral Properties Private Limited (Transferor Company No. 13) have only given collateral

securities for loan/financial assistance availed by the Petitioner/Transferor Company-3. Therefore, such banks/financial institutions are not the secured creditor of the Taral Properties Private Limited (Transferor Company No. 13), and The Petitioner Companies in their clarificatory affidavit cum undertaking have also stated that Loan/Financial Assistance Petitioner/Transferor Company-3 have been repaid in full and awaiting for NO Objection from Bank, which is required to be attached with the Form No. CHG-4 for Satisfaction of Charge. We undertake and state that once, the Company receives the copy of NOC from IDBI Bank Limited then the Company Taral Properties Private Limited (Transferor Company No. 13) will file the form no. CHG-4 with MCA21 portal in due time.

(iii) In para 2(i)(ii), ROC also Observed *"that Transferee Company shall be required to comply with the provisions of Section 61 r/w Section 64 of the Companies Ac 2013 and shall be filed necessary e-form to increase its authorized Capital under the MCA portal as per the requirement of Section 61 r/w Section 64 of the Companies Act, 2013 and Rules made thereunder along with payment of Fee/Additional Fee and necessary Stamp Fee as applicable for the purpose mentioned above".*

The Petitioner Companies in their clarificatory affidavit cum undertaking have stated that authorized capital of the Transferor Companies amounting to Rs.27,00,000/- will be added in the authorized share capital of the Transferee Company and the consolidated authorized share capital of the Transferee

Company will be arrived at Rs.28,00,000/- without making any additional fees as per the provision of the section 232(3)(i) of the Companies Act, 2013. And as per the clause 12.1.2 of the Scheme of Amalgamation, the authorized share capital of the Transferee Company will be increased from Rs. 28,00,000/- (Rupees Twenty Eight Lakhs only) divided into 2,80,000 (Two Lakhs Eighty Thousand) equity shares of Rs. 10/- (Rupees Ten only) each, to Rs.29,50,00,000/- (Rupees Twenty Nine Crores Fifty Lakhs only) divided into 2,95,00,000 (Two Crores Ninety Five Lakhs) equity shares of Rs. 10/- (Rupees Ten only) each without any further act, instrument or deed on the part of the Transferee Company except the payment of fees as applicable. In this regard, we undertake that Transferee Company will pay the difference/balance amount of fees, if any, which is payable on the enhanced Authorized Share Capital and the fees which have already been paid by all the Petitioner Companies at the time of registration/ increase in authorized share capital, as the case may be.

The Petitioner Companies also state and undertake that the Transferee Company will pay the difference/balance amount of fees, if any, which is payable on the enhanced Authorized Share Capital and the fees which have already been paid by all the Petitioner Companies at the time of registration/ increase in authorized share capital as stated in the para 12.1.1 and 12.1.2. and also state and undertake that under the single window principle, no separate procedure is required to be followed under section 61 of the Companies Act, 2013. However, the Petitioner Companies undertake to file the relevant Form No. SH-7 with

the MCA after the Consolidation of Authorised Share Capital of the Transferor Companies into the Transferee Company.

(iv) In para 2(i)(iii) ROC Office also observed and stated that the *"Clause 12.2 of the Scheme provides the change of name of the Transferee Company. In this regard, the Transferee Company shall follow the procedure led down under section 4 read with Section 13 and other applicable provisions of the Companies Act, 2013 and Rules made thereunder and shall be filed the prescribed e-form with the Ministry of Corporate Affairs along with requisite fees / additional Fees as the case may be"*.

The Petitioner Companies in their clarificatory affidavit cum undertaking have stated that the change of name of the Transferee Company ***from Shivalik Developers and Realty Private Limited to Shivalik Developers Private Limited*** will comply with section 4 read with Section 13 and other applicable provisions of the Companies Act, 2013 and Rules made thereunder and filed with the prescribed e-forms with the Ministry of Corporate Affairs along with requisite fees / additional Fees under the single window principle, no separate procedure is required to be followed under section 4 read with Section 13 and other applicable provisions of the Companies Act, 2013 and Rules made thereunder. However, the Petitioner Companies undertake to file the relevant Form No. RUN (Reservation of Unique Name), Form No. MGT-14 and Form No. INC-24 with the MCA21.

(v) In para 2(i)(iv) ROC Office has prayed from Hon'ble Tribunal that *"the Hon'ble National Company Law Tribunal may be pleased to direct the Petitioner Companies to the preservation of the Books of accounts, papers and records, in this regard undertake the Company shall not be disposed of without the prior permission of the Central Government as per the provision of section 239 of the Companies Act, 2013".*

The Petitioner Companies in their clarificatory affidavit cum undertaking have stated that the Transferor Company will preserve its Books of Accounts, papers, and records and it shall not be disposed without the prior approval of the Central Government as per section 239 of the Companies Act, 2013. The Transferor Companies further undertake that it shall ensure statutory compliance of all applicable laws on the sanction of the Scheme by this Tribunal.

(vi) In para 2(i)(v) ROC Office observed and stated *"that the Hon'ble Bench of National Company Law Tribunal may be pleased to direct the Petitioner Companies to ensure Statutory compliance of all applicable Laws and also on sanctioning of the present Scheme, the Transferor Companies shall not be absolved from any of its Statutory liabilities, in any manner".*

The Petitioner Companies in their clarificatory affidavit cum undertaking have stated that the Petitioner Companies will ensure Statutory compliance of all applicable Laws and also on sanctioning of the present Scheme, the Transferor Companies

shall not be absolved from any of its Statutory liabilities, in any manner.

(vii) In para 2(i)(vi) ROC Office observed and stated that the *"necessary Stamp Duty on transfer of property/Assets, if any, is to be paid to the respective Authorities before implementation of the Scheme".*

The Petitioner Companies in their clarificatory affidavit cum undertaking have stated that the Petitioner Company/Transferee Company will pay the necessary stamp duty payment on transfer of property/assets to the respective authorities as per the applicable provision of act.

(viii) In para 2(k) of the said Representation, it is mentioned by the Regional Director that *"the related the legal fees/expenses of the office of Regional Director for submitting this report and representing the matter on behalf of the Central Government may kindly be paid by the applicant company (ies) to the Central Government. Therefore, this tribunal NCLT may be pleased to direct the applicant company (ies) to pay such amount of legal fees/cost to the Central Government which may be considered appropriate by this Hon'ble Tribunal.*

The Petitioner Companies have stated that the Petitioner Company/Transferee Company shall pay necessary fees/cost to the Regional Director as may be decided/directed by this Tribunal.

12. In light of the aforesaid, the observations of the Regional Director and Registrar of Companies stand satisfied.

13. In response to the notice under Section 230(5) of the Act the Official Liquidator (OL), the OL has submitted his separate report all dated 28th November 2022 with respect to the Transferor Companies wherein the OL has prayed for directions to be issued to preserve the books of accounts, papers and records of the Transferor Companies and not to dispose of the same without prior permission of the Central Government as per the provisions of Section 239 of the Companies Act, 2013 and to ensure statutory compliance of all applicable laws and also on sanctioning of the present Scheme, the Transferor Companies shall not be absolved from any of their statutory liabilities, in any manner.

14. In response to the observations made by the OL, Learned Counsel Ms. Nupur Shah, stated that the Petitioner Transferor Companies have filed necessary affidavits in reply all dated 17th February 2023 to the aforesaid Representations of the Official Liquidator. Ms. Nupur Shah has, inter alia, stated that (i) the Petitioner/Transferee Company undertakes to preserve the books of accounts, papers and records of the Petitioner Transferor Companies as per the provisions of Section 239 of the Act; (ii) the Scheme nowhere proposes absolving the Petitioner Companies from any of their statutory liabilities; (iii) the Petitioner/Transferee Company undertakes to pay the cost to the Official Liquidator, as directed by the Tribunal; (iv) the Petitioner/Transferee Company shall make an application, as per the provisions of law, with the concerned collector of stamps; and (v) the Petitioner Companies shall file the certified

copy of the order sanctioning the Scheme with the Registrar of Companies within 30 days from the date of receipt of the certified copy of the order.

15. In light of the aforesaid, the observations made by the Official Liquidator stand satisfied.

16. In response to the notice under Section 230(5) of the Act the concerned Income Tax Department has filed letters dated 01.02.2023 through its Ld. Counsel.

17. Learned Counsel Ms. Nupur Shah, stated that the Petitioner Companies have filed the necessary affidavit in reply dated 17th February, 2023 to the aforesaid letters of the concerned Income Tax Department. The submissions of Learned Counsel are as under:

(i) In para 3 of Report of Income Tax Department has stated that *"a search & seizure operation on Shivalik Shilp Sharda Group and its key associates was initiated on 10/02/2022. During the search & seizure action, the office premise of assesse(s) was covered u/s 132 of tire act."*

(ii) In para 3.1 of Report of Income Tax Department has stated that *"It is further submitted that as the search action was initiated in the case(s) mentioned above in related Shivalik Shilp Sharda group under section 132 and after the 1st day of April, 2021. Therefore, as per provisions of income tax, the AO is deemed to have information for A.Y. 2019-20 to A.Y.2022-23. Accordingly, necessary initiation of proceedings u/s 147 of the Act by issuing notice u/s.1.48 of the Act is pending."*

(iii) In para 3.2 of Report of Income Tax Department has stated that "*However, it may also be noted that according to Finance Act 2022, if the concealed/escaped income exceeds Rs.50 lakh, reassessment can be done up to 10 years from the relevant assessment year.*"

(iv) In para 3.3 of Report of Income Tax Department has stated that "*In view of above facts, the income tax Department must be permitted to retain its recourse for carrying out the assessment/re-assessment proceedings including subsequent imposition of penalties etc., recovery in respect of any such existing or future tax liabilities of the transferor company.*"

(v) In para 4 of Report of Income Tax Department has stated that "Further, in connection with the above, the report regarding pending demand in cases of the following assessees are as under:

Sr. No.	*Name of the assessee*	*AY*	*Demand Section*	*Demand Outstanding (In Rs.)*
1.	*Aadarshini Construction Private Limited*	*2011-12*	*143(3)*	*13,990*
		2021-22	*143(1)*	*1,94,820*
		Total		*2,08,810*
2.	*S N Infraspace Private Limited*	*2020-21*	*143(1)*	*17,620*
3.	*Sharnam Construction Private Limited*	*2021-22*	*143(1)*	*68,240*

Therefore, amalgamation of the assessee(s) companies with Shivalik Developers and Realty Private Limited

(Transferee Company*) are strongly objected."*

The Petitioner Companies in their clarificatory affidavit cum undertaking have stated that the Transferor Company will preserve its Books of Accounts, papers, and records and it shall not be disposed until the time limit as prescribed under the Income Tax Act, 1961.

The Petitioner Companies in their clarificatory affidavit cum undertaking have also stated that Directors and Shareholders of Transferor Companies and Transferee Company belong to the same promoter group (i.e. Shivalik Group). That all the pending liabilities of the Transferor Companies shall automatically get transferred to Transferee Company by virtue of Scheme of amalgamation. The relevant clauses of the Scheme are reproduced hereunder:

Para 4, Sub-Para 4.9 to 4.12

"4.9. All taxes (including but not limited to advance tax, tax deducted at source, minimum alternate tax, any tax credits, taxes withheld/paid, goods & service tax, value added tax, etc.) payable by or refundable to the Transferor Companies, including all or any refunds or claims shall be treated as the tax liability or refunds/claims, etc., as the case may be, of the Transferee Company, and any tax incentives,

advantages, privileges, exemptions, credits, holidays, remissions, reductions, etc., as would have been available to the Transferor Companies, shall upon the Scheme becoming effective, be available to the Transferee Company.

4.10. Upon the Scheme becoming effective and with effect from the Appointed Date, the Transferee Company shall be entitled to claim refunds or credits, with respect to taxes paid by, for, or on behalf of, the Transferor Companies under applicable laws, including income tax, minimum alternate tax, goods & service tax or any other tax, whether or not arising due to any inter se transaction, even if the prescribed time limits for claiming such refunds or credits have lapsed.

4.11. Upon the Scheme becoming effective, any advance tax, self-assessment tax, minimum alternate tax and/or TDS credit available or vested with the Transferor Companies, shall be treated as advance tax paid by the Transferee Company and shall be available to the Transferee Company for set-off against its liability under the Income-tax Act, 1961 and any excess tax so paid shall be eligible for refund together with interest. Any TDS certificates issued by the Transferee Company to, or for the benefit of, the Transferor Companies under the Income-tax Act, 1961 with respect to the inter se transactions, if any, would be available to the Transferee Company to seek refund of from the tax authorities in compliance with law. Further, TDS deposited, TDS certificates issued or TDS returns filed by the Transferor Companies on transactions other than inter se transactions

during the period before the Effective Date shall continue to hold good as if such TDS amounts were deposited, TDS certificates were issued and TDS returns were filed by the Transferee Company. Any TDS deducted by, or on behalf of, the Transferor Companies on inter se transactions, if any, will be treated as advance tax deposited by the Transferee Company.

4.12. Provided that upon the Scheme becoming effective, the Transferee Company is also expressly permitted to revise its income tax returns, withholding tax returns, goods & service tax returns and any other statutory returns and filings under the tax laws, notwithstanding that the period of filing / revising such return may have lapsed, to obtain TDS certificates, including TDS certificates relating to transactions between the Transferor Companies and the Transferee Company, if any, and to claim refunds, advance tax, and withholding tax credits, etc., pursuant to the provisions of this Scheme".

Para 5, Sub-Para 5.1 to 5.2

"5. LEGAL PROCEEDINGS

5.1. Any legal proceedings, including quasi-judicial, arbitral and other administrative proceedings ("Proceedings"), if any, relating to the Transferor Companies, whether by or against the Transferor Companies, shall not abate, be discontinued or in any way prejudicially affected by reason of the amalgamation of the Transferor Companies or of anything contained in this Scheme, but the Proceedings shall

continue and any prosecution shall be enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued, prosecuted and/or enforced by or against the Transferor Companies, as if this Scheme had not been implemented.

5.2. The Transferee Company undertakes to have all Proceedings referred to in Clause 5.1 above initiated by or against the Transferor Companies, transferred into its name and to have such proceedings continued, prosecuted and enforced by or against the Transferee Company, as the case may be".

The provisions of Section 72A of the Income Tax Act, 1961 are also reproduced hereunder:

72A. [(1) ***Where there has been an amalgamation of—***

(a) a company owning an industrial undertaking or a ship or a hotel with another company; or
(b) a banking company referred to in clause (c) of section 5 of the Banking Regulation Act, 1949 (10 of 1949) with a specified bank; or
[(c) one or more public sector company or companies with one or more public sector company or companies; or
(d) an erstwhile public sector company with one or more company or companies, if the share purchase agreement entered into under strategic disinvestment restricted immediate amalgamation of the said public sector company and the amalgamation is carried out within five years from the end of the previous year in which the restriction on amalgamation in the share purchase agreement ends,]

then, notwithstanding anything contained in any other provision of this Act, the accumulated loss and the unabsorbed depreciation of the amalgamating company shall be deemed to be the loss or, as the case may be, allowance for unabsorbed depreciation of the amalgamated company for the previous year in which the amalgamation was effected, and other provisions of this Act relating to set off and carry forward of loss and allowance for depreciation shall apply accordingly:]

The Petitioner Companies in their clarificatory affidavit cum undertaking have also stated in view of the above Clauses of the Scheme of Amalgamation being Sub-Para 4.9 to 4.12 of Para 4 and Para 5, Sub-Para 5.1 to 5.2 read with section 72A of the Income Tax Act, we state that The Income Tax Department is allowed and permitted to retain its recourse for carrying out the Assessment / Reassessment proceedings including subsequent imposition of Penalties etc., recovery in respect of any such existing or future tax liabilities of the Transferor Companies from the Transferee Company, by creating charge in accordance with the Law in respect of the assets sought to be transferred under the proposed scheme which has been duly stated in the above referred clauses of the scheme of Amalgamation and accordingly the application of Scheme of Amalgamation of

the Transferor Company's may be considered by the Hon'ble National Company Law Tribunal keeping the rights of Assessing Authority and I.T. Authorities as stated above.

The Petitioner Companies in their clarificatory affidavit cum undertaking have also stated the Petitioner Companies to ensure Statutory compliance of all applicable Laws and also on sanctioning of the present Scheme, the Transferor Companies shall not be absolved from any of its Statutory liabilities, in any manner.

The Petitioner Companies in their clarificatory affidavit cum undertaking have also stated that -

(i) In the case of the Petitioner Company Aadarshini Construction Private Limited for AY 2011-12 there is outstanding demand u/s. 143(3) of the Income Tax Act amounting to Rs. 13,990/-. That the said demand is paid along with interest amounting to Rs. 14,984/- on 14.02.2023 vide challan no.19189. Hence, currently there is no outstanding demand in case of the Petitioner Company Aadarshini Construction Private Limited for AY 2011-12.

(ii) In the case of the Petitioner Company Aadarshini Construction Private Limited for AY 2021-22 there is outstanding demand u/s. 143(1) of the Income Tax Act amounting to Rs. 1,94,820/-. That the said demand so generated is incorrect and the Petitioner Company Aadarshini Construction Private Limited has filed a rectification request online on 07.02.2023. And The Petitioner Company Aadarshini Construction Private Limited has also filed rectification application u/s. 154 of the IT Act with the DCIT, Central Circle – 2(1), Ahmedabad vide letter dated 17.02.2023.

(iii) In the case of the Petitioner Company S N Infraspace Private Limited for AY 2020-21 there is outstanding demand u/s. 143(1) of the Income Tax Act amounting to Rs. 17,620/-. That the said demand so generated is incorrect and the Petitioner Company has filed a rectification application u/s. 154 of the IT Tax Act with the DCIT, Central Circle – 2(1), Ahmedabad vide letter dated 17.02.2023.

The Petitioner Company S N Infraspace Private Limited has also filed the response to outstanding demand on the ITBA portal requesting to delete the demand from the online records on 15.02.2023.

(iv) In the case of the Petitioner Company Sharnam Construction Private Limited for AY 2021-22 there is outstanding demand u/s. 143(1) of the Income Tax Act amounting to Rs. 68,240/-. That the said demand so generated is incorrect and the Petitioner company has filed a rectification request online on 07.02.2023. and The Petitioner Company Sharnam Construction Private Limited has also filed rectification application u/s. 154 of the IT Act with the DCIT, Central Circle – 2(1), Ahmedabad vide letter dated 17.02.2023.

18. Learned Counsel for the Petitioner Companies submitted that in any case the demand in respect of Transferor Companies will be payable by the Transferee Company and there shall be no revenue loss to the Income Tax department.

19. Learned Counsel for the Income Tax Department stated that they are satisfied with clarificatory affidavit cum undertaking filed by

the Petitioner Companies wherein it has been stated that all liabilities shall be vested in the Transferee Company and all the proceeding shall be carried out in the Transferee Company for which the Income Tax Department has no objection.

20. In light of the aforesaid, the observations made by the Income Tax Department stand satisfied.

21. It has been submitted by the Ld. Counsel appearing for the Petitioner Companies that the Scheme is not against the public policy. It has also been stated that it does not adversely impact any unsecured creditors of the Transferor Companies and the Secured and Unsecured Creditors of the Transferee Company. It has also been submitted that all statutory obligations under all applicable laws shall be complied with.

22. The petitioner companies have placed on record a copy of the Valuation Report dated 22.07.2021 issued by Mr. Darshil Shah, Registered Valuer.

23. The Petitioner Companies have stated in the Petition that no inspection or investigation has been instituted or is pending against any of the petitioner companies under the provisions of the Companies Act, 2013. It was also stated that if there is any deficiency found, or violation committed of any enactment, statutory rules or regulations, the sanction granted by the Tribunal to the scheme will not come in the way of action being taken in accordance with law, against the concerned persons, directors and officials of the petitioner companies.

24. In compliance with the proviso to clause (e) of sub-section (7) of Section 230 of the Companies Act, 2013, certificate from the statutory auditor of the Petitioner Transferee Company dated 09.08.2021, is placed on record confirming that the accounting treatment as proposed under the Scheme is in conformity with the applicable Accounting Standards prescribed under section 133 of the Companies Act, 2013.

25. Heard Ld. Counsel for the Petitioner Companies also gone through the records.

26. It is noted that the Appointed Date mentioned in the Scheme is 01.04.2021. As per the records, a search under Section 132 of the Income Tax Act has been conducted on 10.02.2022 and as such the Assessment for the search year relating to the AY 2022-23 would be in progress and therefore it was considered proper to advice the Ld. Counsel to consider for advancing the Appointed Date after the date of search which could be 01.04.2022. During the hearing, the Ld. Counsel for the applicants, after having consultation with his clients, confirmed for amending the proposed Scheme by taking the Appointed Date as 01.04.2022. They have also filed an affidavit in this regard by amending the relevant sub-para 1.1.2 of Part-1 of the Scheme of Amalgamation is as under:-

> *"1.1.2 "Appointed Date" for the purpose of this scheme and for Income Tax Act, 1961, the "Appointed Date" means the open of business hours on 1st day of April, 2022 or such other date as may be fixed or approved by the Central Government or the National Company Law Tribunal or such other competent authority may approve".*

Accordingly, the Appointed Date shall be taken as 01.04.2022.

27. On the basis of above the facts and submissions made by the learned Counsel and by considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, it appears that the requirements of the provisions of section 230 and 232 are satisfied by the petitioner companies. We are of the considered view that the proposed Scheme of Amalgamation is bona fide and in the interest of the shareholders and creditors. In the result, Company Petition No. C.P.(CAA)/75/NCLT/(AHM)/2022 is allowed. The Scheme envisages amalgamation of M/s. Aadarshini Construction Private Limited, M/s. Dipali Organisor Private Limited, M/s. S N Infraspace Private Limited, M/s. S N Realties Private Limited, M/s. S N Realty Construction Private Limited, M/s. Sharanam Construction Private Limited, M/s. Shaswat Realties Private Limited, M/s. Shivalik Developers Private Limited, M/s. Shivalik Home Services Private Limited (Formerly Known as Splendor Realty Private Limited), M/s. Shivalik Infra-Projects Private Limited, M/s. Shivalik Plaza Private Limited, M/s. Shivalik Realty Sthaptya Private Limited and M/s. Taral Properties Private Limited with M/s. Shivalik Developers And Realty Private Limited (Formerly Known as M/s. Shrushti Organisors Private Limited). It is declared that the said sanctioned Scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the scheme.

28. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in

the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioners.

29. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

30. This Tribunal orders as under: -

O R D E R

(i) The Scheme of Amalgamation as annexed herewith as "**Annexure-A"** is hereby sanctioned and is declared that the same shall be binding on the Petitioner Companies and its shareholders and creditors and all concerned under the Scheme;

(ii) It is declared that the Transferor Companies shall be dissolved without winding up.

(iii) All the property annexed herewith as **"Annexure B",** right and powers of the Transferor Companies specified in the Schedule hereto and all the other

property, rights and powers of the Transferor Companies be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, be transferred to and vested in the Transferee Company for all the estates and interest of the Transferor Companies therein.

(iv) Upon the coming into effect of this Scheme, and in consideration of the transfer of and vesting of the Undertakings of the Transferor Companies in the Transferee Company in terms of the Scheme:

(a) The Transferee Company shall without further application and allot to the members of the Transferor Companies, whose names are registered in the Register of Members of the Transferor Companies, as on the record date, the shares in the Transferee Company to which they are entitled in the following ratio:

1. 1375 (One Thousand Three Hundred Seventy-Five) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 1

(i.e. Aadarshini Construction Private Limited);

2. 380 (Three Hundred Eighty) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 2 (i.e. Dipali Organisor Private Limited);

3. 4467 (Four Thousand Four Hundred and Sixty Seven) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 3 (i.e. S N Infraspace Private Limited);

4. 10 (Ten) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for

every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 4 (i.e. S N Realties Private Limited);

5. 238 (Two Hundred Thirty Eight) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 5 (i.e. S N Realty Construction Private Limited);

6. 4986 (Four Thousand Nine Hundred Eighty Six) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 6 (i.e. Sharanam Construction Private Limited);

7. 10 (Ten) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 7 (i.e. Shaswat Realties Private Limited);

8. 10 (Ten) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 8 (i.e. Shivalik Developers Private Limited);

9. 1 (One) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 9 (i.e. Shivalik Home Services Private Limited

(Formerly Known As Splendor Realty Private Limited);

10. 957 (Nine Hundred Fifty Seven) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 10 (i.e. Shivalik Infra-Projects Private Limited);

11. 10 (Ten) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 11 (i.e. Shivalik Plaza Private Limited);

12. 825 (Eight Hundred Twenty Five) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each

credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 12 (i.e. Shivalik Realty Sthaptya Private Limited); and

13. 428 (Four Hundred Twenty Eight) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formerly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 13 (i.e. Taral Properties Private Limited).

(v) All the liabilities and duties of the Transferor Companies be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, and become the liabilities and duties of the Transferee Company.

(vi) All proceedings, if any, now pending or against the Transferor Companies be continued by or against the Transferee Company. All taxes paid or payable by the Transferor Companies and all existing and future incentives, un-availed credits and exemptions, the

benefit of carried forward losses, and other statutory benefits, to which the Transferor Companies is entitled to, shall be available to and vest in the Transferee Company;

(vii) All contracts, agreements, undertakings, insurance policies, bonds and all other instruments of whatsoever nature or description, of the Transferor Companies which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company in accordance with the Scheme and be in full force and effect in favour of the Transferee Company as the case may be and may be enforced by or against it as fully and effectually as if, instead of the Transferor Companies, the Transferee Company had been a party or beneficiary or obliged thereto;

(viii) All workers/employees of the Transferor Companies shall be deemed to become the workers /employees of the Transferee Company with effect from the Appointed Date, and shall stand absorbed in the Transferee Company in accordance with the Scheme without any interruption of service and on term and conditions no less favourable than those on which they are engaged by the Transferor Companies, as on the Effective Date;

(ix) The Petitioner Companies within thirty days of the date of receipt of this order, cause a certified copy of

this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the entire Undertaking of the Transferor Companies shall stand transferred to the Transferee Company and the Registrar of Companies shall place all documents relating to the Transferor Companies to the file kept by him in relation to the Transferee Company and the files relating to the said companies shall be treated accordingly.

(x) Upon Scheme being effective, the Authorised Capital of the Transferor Companies shall be consolidated with the Authorised Capital of the Transferee Company.

(xi) All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme.

(xii) The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

(xiii) The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme

with the concerned the Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

(xiv) The legal fees and expenses of the office of the Regional Director are quantified at Rs.10,000/- each in respect of the Petitioner Companies. The said fees to the Regional Director shall be paid by the Transferee Company.

(xv) The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- each in respect of the Transferor Companies. The said fees of the Official Liquidator shall be paid by the Transferee Company.

(xvi) Filing and issuance of drawn up orders are dispensed with. All concerned authorities to act on a copy of this order along with the Scheme duly authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the authenticated copy of this order along with Scheme immediately.

(xvii) Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

31. The Company Petition C.P.(CAA)/75/NCLT/(AHM)/2022 in C.A.(CAA)/7(AHM)/2022 is disposed of.

-SD-	-SD-
KAUSHALENDRA KUMAR SINGH	**DR. MADAN B GOSAVI**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**

Sudha

Annexure - A

1220

Annexure - AC

COMPOSITE SCHEME OF AMALGAMATION

OF

AADARSHINI CONSTRUCTION PRIVATE LIMITED

(Transferor Company 1)

AND

DIPALI ORGANISOR PRIVATE LIMITED

(Transferor Company 2)

AND

S N INFRASPACE PRIVATE LIMITED

(Transferor Company 3)

AND

S N REALTIES PRIVATE LIMITED

(Transferor Company 4)

AND

S N REALTY CONSTRUCTION PRIVATE LIMITED

(Transferor Company 5)

AND

SHARANAM CONSTRUCTION PRIVATE LIMITED

(Transferor Company 6)

AND

SHASWAT REALTIES PRIVATE LIMITED

(Transferor Company 7)

AND

SHIVALIK DEVELOPERS PRIVATE LIMITED

(Transferor Company 8)

AND

SHIVALIK HOME SERVICES PRIVATE LIMITED

(FORMALLY KNOWN AS SPLENDOR REALTY PRIVATE LIMITED)

(Transferor Company 9)

AND

SHIVALIK INFRA-PROJECTS PRIVATE LIMITED

(Transferor Company 10)

AND

SHIVALIK PLAZA PRIVATE LIMITED

(Transferor Company 11)

AND

SHIVALIK REALTY STHAPTYA PRIVATE LIMITED

(Transferor Company 12)

AND

TARAL PROPERTIES PRIVATE LIMITED

(Transferor Company 13)

WITH

SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED

(FORMALLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED)

(Transferee Company)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

(UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013)

A. PREAMBLE OF THE SCHEME

This Scheme (as defined hereinafter) is presented under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (as defined hereinafter), for the amalgamation of the Transferor Companies (as defined hereinafter) with the Transferee Company (as defined hereinafter) and for matters consequential, incidental, supplementary and/ or otherwise integrally connected therewith.

The Scheme is in the interest of the Transferor and Transferee Companies, their respective shareholders, and creditors.

B. INTRODUCTION

TRANSFEROR COMPANIES:

(i) **AADARSHINI CONSTRUCTION PRIVATE LIMITED** (Company Registration Number: 053265 and having Corporate Identification Number: U45201GJ2008PTC053265), a private company incorporated on 17th March, 2008, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: account@shivalikgroup.com **(hereinafter referred as 'ACPL' or 'Transferor Company-1')**. AADARSHINI CONSTRUCTION PRIVATE LIMITED is inter alia engaged in the business of to carry on business of acquiring/purchasing land, estate and premises of every description for the purpose of lay-outing, planning, developing, demolishing, erecting, building, constructing, altering, repairing, remodeling, decorating, dividing, amalgamating, maintaining, in connection with civil engineering

construction like building, schemes, roads; highways, rocks, ships, wells, reservoirs, ports, railways, irrigations, water supply and drainage work, electric light, telephonic, telegraphic, power supply works. and also designing and constructing Industrial projects, industrial complexes, warehousing, estate, town ships, markets farm house, flats including multi – storeyed falts, apartments, show rooms, commercial centres, shopping centres, entertainment centres, hotels, guest houses, bunglows, tenements of every description and for attainment of the above referred object to render services such as preparation of estimates and/or specifications designing, planning, modeling and such other essential services and also to deal in business of material management, stand by equipment's, drainage facilities and other amenities, supply of water and electricity and installation of weather conditioning and communication systems as provided under the main object of the company in its Memorandum of Association.

(ii) **DIPALI ORGANISOR PRIVATE LIMITED** (Company Registration Number: 044411 and having Corporate Identification Number: U45201GJ2004PTC044411) a private company incorporated on 5th July, 2004, under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: account@shivalikgroup.com (hereinafter referred as **'DOPL'** or **'Transferor Company-2'**). DIPALI ORGANISOR PRIVATE LIMITED is *inter alia* engaged in the business of To carry on in India the business to construct, build, later, take on lease, purchase or acquire, convert, improve, design, erect, establish, equip, develop, dismantle, pull down, turn to account furnish, level, decorate, fabricate, install, finish, repair, maintain, search, survey, examine, taste, inspect, locate, modify, own, operate, protect, promote, provide, participate, reconstruct, grout

dig, excavate, pour, renovate, remodel, rebuild, undertake, contribute, assist, and to act as civil engineer, architectural engineer, interior decorator, consultant, advisor, agent, broker, supervisor, administrator, contractor, sub-contractor, turnkey contractor and manager of all types of constructions and developmental work in all its branches such as roads, ways, culverts, dams, bridges, canals, walls, railways, tramways, water tanks, reservoirs, warehouses, factories, building, structure, drainage and sewage, works, water distribution an filtration systems, docks, harbors, piers, irrigation works, foundation works, flyovers, airports , runways, schools, clubs, theaters, gardens, place of amusements, libraries, reading rooms, pavilions, vehicle stands, dairy, garages, rock drilling, aqueducts, stadiums, hydraulic units, sanitary work , power stations, hotels, hospitals, dharamshalas, residential and commercial premises, multistoried colonies, shops, complexes, housing projects, and the similar works and for the purpose to acquire, handover, purchase, sell own, cut to size, develop , distribute or otherwise to deal in all sorts of lands and buildings and to carry on all or any of the foregoing activities for building materials, goods, plants, machineries, equipments, accessories , parts, tools, fittings, articles , materials and facilities of whatsoever nature and to do all as provided under the main object of the company in its Memorandum of Association.

(iii) **S N INFRASPACE PRIVATE LIMITED** (Company Registration Number: 042726 and having Corporate Identification Number: U45202GJ2003PTC042726) a private company incorporated on 6th August, 2003, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: account@shivalikgroup.com (hereinafter referred as **'SNIPL'** or **'Transferor Company-3'**). S N INFRASPACE PRIVATE LIMITED is *inter alia* engaged in the business of To carry on in India or elsewhere in the

world, either alone or jointly with one or more person, government, local or other bodies, foreign collaborator, the business to construct, build, take on lease, purchase or acquire, convert, improve, design, erect, established, equip , develop, dismantle, pull down, turn to account furnish, level, decorate, fabricate, install, finish, repair, maintain, search, survey, examine, inspect, locate, modify, own, protect, promote, provide, participate, reconstruct, dig, pour, renovate, remodel, rebuilt, undertake, contribute, assist and to act as civil engineer, architectural engineer, Interior decorator, consultant, advisor, agent, broker, supervisor, administrator, contractor, sub- contractor, turn key contractor and of all types of construction and developmental work in all of its branches such as roads, ways, culverts, dams, bridges, canals, walls, railways, tramways, water tanks, reservoirs, warehouses, factories, building, structure, drainage and sewage works, flyover, airports, runway, schools, clubs, theaters, gardens, place of amusements, libraries, reading rooms, pavilions, vehicle stands, dairy, garages, rock drilling, aqueducts, stadiums, hydraulic units, sanitary work, power supply work, power stations, hotels, hospitals, dharmashalas, residential and commercial premises, multistories, colonies, shops, complex, housing projects and the similar works as provided under the main object of the company in its Memorandum of Association.

(iv) **S N REALTIES PRIVATE LIMITED** (Company Registration Number: 046957 and having Corporate Identification Number: U45200GJ2005PTC046957) a private company incorporated on 20th October, 2005, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: account@shivalikgroup.com (hereinafter referred as 'SNRPL' or 'Transferor Company-4'). S N REALTIES PRIVATE

LIMITED is *inter alia* engaged in the business of to organize, develop, design, construct, excute, carry out, establish, acquire, maintain, remodel, alter, works, control, take on lease, purchase or acquire, layout, sell, build, erect, demolish, repair under any terms and conditions.in India or abroad any type of infrastructure projects like, hotels, resorts, buildings, offices, townships, flats, houses,.factories, warehouses, godowns, shops, estates; co. op. housing societies, clubs, theaters, water parks, electric generating stations, hospitals, restaurants, gardens, place of amusements, bridges, roads, power plants, pons, highways, dams, canals, airports, railway tracts and stations, oil depots and terminals, jetty.'ies and to undertake, provide all types of services and works the company may think appropriate and useful in the behalf. as provided under the main object of the company in its Memorandum of Association.

(v) **S N REALTY CONSTRUCTION PRIVATE LIMITED** (Company Registration Number: 046981 and having Corporate Identification Number: U45200GJ2005PTC046981) a private company incorporated on 25th October, 2005, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: account@shivalikgroup.com (hereinafter referred as **'SNRCPL'** or **'Transferor Company-5'**). S N REALTY CONSTRUCTION PRIVATE LIMITED is *inter alia* engaged in the business of to organize, develop, design, construct, excute, carry out, establish, acquire, maintain, remodel, alter, works, control, take on lease, purchase or acquire, layout, sell, build, erect, demolish, repair under any terms and conditions.in India or abroad any type of infrastructure projects like, hotels, resorts, buildings, offices, townships, flats, houses, factories, warehouses, godowns, shops, estates; co. op. housing societies, clubs, theaters, water parks, electric generating stations, hospitals, restaurants, gardens, place of amusements,

bridges, roads, power plants, pons, highways, dams, canals, airports, railway tracts and stations, oil depots and terminals, jetty/ies and to undertake, provide all types of services and works the company may think appropriate and useful in the behalf as provided under the main object of the company in its Memorandum of Association.

(vi) **SHARANAM CONSTRUCTION PRIVATE LIMITED** (Company Registration Number: 042748 and having Corporate Identification Number: U45201GJ2003PTC042748) a private company incorporated on 11th August, 2003, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: account@shivalikgroup.com (hereinafter referred as **'SCPL'** or **'Transferor Company-6'**). SHARANAM CONSTRUCTION PRIVATE LIMITED is *inter alia* engaged in the business of to carry on in India or elsewhere in the world, either alone or jointly with one or more person, government, local or other bodies, foreign collaborator, the business to construct, build, take on lease, purchase or acquire, convert, improve, design, erect, establish, equip, develop, dismantle, pull down, turn to account furnish, level, decorate, fabricate, install, finish, repair, maintain, search, survey, examine, inspect, locate, modify, own, protect, promote, provide, participate, reconstruct, dig, pour, renovate, remodel, rebuild, undertake, contribute, assist and to act as civil engineer, architectural engineer, interior decorator, consultant, advisor, agent, broker, supervisor, administrator, contractor, sub-contractor, turnkey contractor and of all types of constructions and developmental work in all its branches such as roads, ways, culverts, dams, bridges, canals, walls, railways, tramways, water tanks, reservoirs, warehouses, factories/ building structure, drainage and sewage, works, after distribution filtration systems, docks, harbors, piers, irrigation works, foundation works, flyovers, airports, runways,

schools, clubs, theaters, gardens, place of amusements, libraries, reading rooms, pavilions, vehicle stands, dairy, garages, rock drilling, aqueducts stadiums, hydraulic units, sanitary work, power supply works, power stations, hotels, hospitals dharmashalas, residential and commercial premises, multistories, colonies, shops, complex, housing projects and the similar works as provided under the main object of the company in its Memorandum of Association.

(vii) **SHASWAT REALTIES PRIVATE LIMITED** (Company Registration Number: 044512 and having Corporate Identification Number: U45201GJ2004PTC044512) a private company incorporated on 26th July, 2004, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: account@shivalikgroup.com (hereinafter referred as 'SRPL' or **'Transferor Company-7'**). SHASWAT REALTIES PRIVATE LIMITED is *inter alia* engaged in the business of o carry on in India the business to construct, build, take on lease, purchase or acquire, convert, improve, design, erect, establish, equip, develop, dismantle , pull down, level, decorate, fabricate, install, finish, repair, maintain, search, survey, examine, inspect, locate, modify, own, operate, protect, promote, provide, participate, reconstruct, grout, dig, excavate, pour, renovate, remodel, rebuild, undertake, contribute, assist, and to act as civil engineer, architectural engineer, interior decorator, consultant, advisor, agent, broker, supervisor, administrator, contractor, sub-contractor, turnkey contractor and manager of all types of constructions and developmental work in all its branches such as roads, ways, culverts, dams, bridges, canals, walls, railways, tramways, water tanks, reservoirs, warehouses, factories, building, structure, drainage and sewage, works, water distribution filtration systems, docks, harbors, piers, irrigation works,

foundation works, flyovers, airports, runways, schools, clubs, theaters, gardens, place of amusements, libraries, reading rooms, pavilions, vehicle stands, dairy, garages, rock drilling, aqueducts, stadiums, hydraulic units, sanitary work, hotels, hospitals, dharamshalas, residential and commercial premises, multistoried colonies, shops, complexes, housing projects, and the similar works and for the purpose to acquire, handover, purchase, sell own, cut to Size, develop, distribute or otherwise to deal in all sorts Of lands and buildings and to carry on all or any of the foregoing activities for building materials, goods, plants, machineries, equipments, accessories, parts, tools, fittings, articles, materials and facilities as provided under the main object of the company in its Memorandum of Association.

(viii) **SHIVALIK DEVELOPERS PRIVATE LIMITED** (Company Registration Number: 049089 and having Corporate Identification Number: U45200GJ2006PTC049089) a private company incorporated on 15th September, 2006, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: accounts@shivalikgroup.com (hereinafter referred as **'SDPL' 'Transferor Company-8'**). SHIVALIK DEVELOPERS PRIVATE LIMITED is *inter alia* engaged in the business of to organize, develop, design, construct, execute, carry out, establish, acquire, maintain, remodel, alter, works, control, take on lease, purchase or acquire, layout, sell, build, erect, demolish, repair under any terms and conditions in India or abroad any type of infrastructure projects like, hotels, resorts, buildings, offices, township, flats, houses, factories, warehouses , godowns, shops, estates, co. op. housing societies, clubs, theaters, water parks, electric generating stations, hospitals, restaurants, gardens, place of amusements, bridges, roads, power plants, ports, highways, dams, canals, airports, railway tracks and stations, oil depot and terminals, jetty etc., and to

undertake provide all types of services and works the company may think appropriate and useful in the behalf as provided under the main object of the company in its Memorandum of Association.

(ix) **SHIVALIK HOME SERVICES PRIVATE LIMITED** (Company formally known as SPENDOR REALTY PRIVATE LIMITED having Registration Number: 072679 and having Corporate Identification Number: U70101GJ2012PTC072679) a private company incorporated on 12th November, 2012, under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: anuj@shivalikprojects.com (hereinafter referred as **'SHSPL'** or **'Transferor Company-9'**). SHIVALIK HOME SERVICES PRIVATE LIMITED is *inter alia* engaged in the business of acquisition of land, building or part of building, industrial sheds & plots, or any right in any immovable property within or outside the limits of municipal corporation, doing construction on the said acquired property, Selling the same property or giving the same property on rent, or carry on Business of acquisition of land and constructing, Managing, administrating, maintaining of Hotel, Resort as provided under the main object of the company in its Memorandum of Association.

(x) **SHIVALIK INFRA-PROJECTS PRIVATE LIMITED** (Company Registration Number: 053044 and having Corporate Identification Number: U45209GJ2008PTC053044) a private company incorporated on 26th February, 2008, under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: account@shivalikgroup.com (hereinafter referred as **'SIPPL'** or **'Transferor Company-10'**). SHIVALIK INFRA-PROJECTS-

PRIVATE LIMITED is *inter alia* engaged in the business of to organize, develop, design, construct, execute, carry out, establish, acquire, maintain, remodel, alter, works, control, take on lease, purchase or acquire, layout, sell, build, erect, demolish, repair under any terms and conditions in India or abroad any type of infrastructure projects like, hotels, resorts, buildings, offices, township, flats, houses, factories, warehouses , godowns, shops, estates, co. op. housing societies, clubs, theaters, water parks, electric generating stations, hospitals, restaurants, gardens, place of amusements, bridges, roads, power plants, ports, highways, dams, canals, airports, railway tracks and stations, oil depot and terminals, jetty etc., and to undertake provide all types of services and works the company may think appropriate and useful in the behalf as provided under the main object of the company in its Memorandum of Association.

(xi) **SHIVALIK PLAZA PRIVATE LIMITED** (Company Registration Number: 053161 and having Corporate Identification Number: U45201GJ2008PTC053161) a private company incorporated on 5th March, 2008, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: account@shivalikgroup.com (hereinafter referred as **'SPPL'** or **'Transferor Company-11'**). SHIVALIK PLAZA PRIVATE LIMITED is *inter alia* engaged in the business of to organize, develop, design, construct, execute, carry out, establish, acquire, maintain, remodel, alter, works, control, take on lease, purchase or acquire, layout, sell, build, erect, demolish, repair under any terms and conditions in India or abroad any type of infrastructure projects like, hotels, resorts, buildings, offices, township, flats, houses, factories, warehouses , godowns, shops, estates, co. op. housing societies, clubs, theaters, water parks, electric generating stations, hospitals, restaurants, gardens, place of amusements, bridges,

roads, power plants, ports, highways, dams, canals, airports, railway tracks and stations, oil depot and terminals, jetty etc., and to undertake provide all types of services and works the company may think appropriate and useful in the behalf as provided under the main object of the company in its Memorandum of Association.

(xii) **SHIVALIK REALTY STHAPTYA PRIVATE LIMITED** (Company Registration Number: 051859 and having Corporate Identification Number: U45201GJ2007PTC051859) a private company incorporated on 1st October, 2007, under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: account@shivalikgroup.com (hereinafter referred as **'SRSPL'** or **'Transferor Company-12'**). SHIVALIK REALTY STHAPTYA PRIVATE LIMITED is *inter alia* engaged in the business of o organize, develop, design, construct, execute, carry out, establish, acquire, maintain, remodel, alter, works, control, take on lease, purchase or acquire, layout, sell, build, erect, demolish, repair under any terms and conditions in India or abroad any type of infrastructure projects like, hotels, resorts, buildings, offices, township, flats, houses, factories, warehouses , godowns, shops, estates, co. op. housing societies, clubs, theaters, water parks, electric generating stations, hospitals, restaurants, gardens, place of amusements, bridges, roads, power plants, ports, highways, dams, canals, airports, railway tracks and stations, oil depot and terminals, jetty etc., and to undertake provide all types of services and works the company may think appropriate and useful in the behalf as provided under the main object of the company in its Memorandum of Association.

(xiii) **TARAL PROPERTIES PRIVATE LIMITED** (Company Registration Number: 042727 and having Corporate Identification Number:

U45203GJ2003PTC042727) a private company incorporated on 6th August, 2003, under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India and having email address: account@shivalikgroup.com (hereinafter referred as 'TPPL' or **'Transferor Company-13'**). TARAL PROPERTIES PRIVATE LIMITED is *inter alia* engaged in the business of to carry on in India or elsewhere in the world, either alone or jointly with one or more person, government, local or other bodies, foreign collaborator, the business to construct, build, take on lease, purchase or acquire, convert, improve, design, erect, establish, equip, develop, dismantle, pull down, turn to account furnish, level, decorate, fabricate, install, finish, repair, maintain, search, survey, examine, inspect, locate, modify, own, protect, promote, provide, participate, reconstruct, dig, pour, renovate, remodel, rebuild, undertake, contribute, assist and to act as civil engineer, architectural engineer, interior decorator, consultant, advisor, agent, broker, supervisor, administrator, contractor, sub-contractor, turnkey contractor and of all types of constructions and developmental work in all its branches such as roads, ways, culverts, dams, bridges, canals, walls, railways, tramways, water tanks, reservoirs, warehouses, factories, building, structure, drainage and sewage, works, after distribution filtration systems, docks, harbors, piers, irrigation works, foundation works, flyovers, airports, runways, schools, clubs, theaters, gardens, place of amusements, libraries, reading rooms, pavilions, vehicle stands, daily, garages, rock drilling, aqueducts, stadiums, hydraulic units, sanitary work, power supply works, power stations, hotels, hospitals, dharmashalas, residential and commercial premises, multistories, colonies, shops, complex, housing projects and the similar works as provided under the main object of the company in its Memorandum of Association.

TRANSFEREE COMPANY:

(xiv) **SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED** (Company Formally Known AS SHRUSHTI ORGANISORS PRIVATE LIMITED and having Registration Number: 045025 and having Corporate Identification Number: U45201GJ2004PTC045025) a private company incorporated on 11th November, 2004, under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur, Ahmedabad Gujarat 380015 and having email address: account@shivalikgroup.com (hereinafter referred as **'SDRPL'** or **'Transferee Company'**) SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (COMPANY FORMALLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) is *inter alia* engaged in the business of to carry on in India or elsewhere in the world, either alone or jointly with one or more person, government, local or other bodies the business to construct, build, take on lease, purchase or acquire, convert, improve, design, erect, establish, equip, develop, dismantle, pull down, turn to account, furnish, level, decorate, fabricate, install, finish, repair, maintain, search, survey, examine, test, inspect, locate, modify, own, operate, protect, promote, participate, reconstruct, grout, dig, excavate, pour, renovate, remodel, rebuilt, undertake, contribute, assist and to act as civil engineer, architectural engineer, interior decorator, consultant, advisor, agent, broker, supervisor, administrator, contractor, sub-contractor, turnkey contractor and manager of all types of construction and developmental work in all its branches such as roads, ways, culverts, dams, bridges, canals, walls, railways, tramways, water-tanks, reservoirs, warehouses, factories, building, structure, drainage and sewage, works water distribution and filtration systems, docks, harbors, piers, irrigation works, foundation works, flyovers, airports, runways, schools, clubs, theaters, gardens, place of amusements, libraries, reading rooms,

pavilions, vehicle stand, garages, rock drilling, aqueducts, stadiums, hydraulic units sanitary works, power supply works, power station, hotel, hospitals, dharmshalas, residential and commercial premises, multistoried colonies, shops, complexes, housing projects and the similar works and for the purpose to acquire, handover, purchase, sell own, cut to size for develop as provided under the main object of the company in its Memorandum of Association.

C. RATIONALE OF THE SCHEME

The Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5, Transferor Company 6, Transferor Company 7, Transferor Company 8, Transferor Company 9, Transferor Company 10, Transferor Company 11, Transferor Company 12, and Transferor Company 13 (collectively hereinafter referred to as **"Transferor Companies"**) and the promoter of the Transferee Company are part of the same group i.e. **Shivalik group** and are engaged in the complimentary/similar line of business and related services.

The background and circumstances which justify the proposed scheme of Amalgamation, which makes it beneficial for all concerned, including the members of all the Companies, are inter-alia as follows:

(i) The Transferor Companies and the Transferee Company are engaged in the complimentary/similar line of business and intend to and can achieve economies of scale, efficiency, optimization of logistics and distribution network and other related economies of scale by consolidating the business operations being managed by different management teams. This Scheme of Amalgamation intends to merge the operations of the Transferor Companies with the Transferee Company to fulfil this objective.

(ii) Greater integration and greater financial strength and flexibility for the Amalgamated entity, which would result in maximizing overall shareholder value, and will improve the competitive position of the Amalgamated entity.

(iii) Better efficiency in funds management of the Amalgamated entity, and unfettered access to cash-flow generated by the combined business which can be deployed more efficiently to fund organic and inorganic growth opportunities, to maximize shareholder value.

(iv) The Amalgamated entity will have the benefit of synergy and stability of operations and would help to achieve economies of scale through efficient utilization of resources and facilities.

(v) The proposed amalgamation will result in administrative and operations rationalisation, organisational efficiencies, reduction in overheads and other expenses and optimal utilization of various resources. It will prevent cost duplication and will result in synergies in operations. The synergies created by the amalgamation would increase operational efficiency and integrate business functions.

(vi) The restructuring proposed under the Scheme will not affect the normal business operations of the Transferee Company, but would improve the same.

(vii) The secured and unsecured creditors shall not have any less right.

D. PARTS OF THE SCHEME

The Scheme is divided into the following parts:

PART I Deals with definitions, interpretation, effective date and the share capital;

PART II Deals with the amalgamation of the Transferor Companies with the Transferee Company in accordance with Sections 230 to 232 of the Companies Act, 2013; and

PART III Deals with the general terms and conditions applicable to the Scheme.

PART I

1. DEFINITIONS:

1.1. In this Scheme unless the meaning or context otherwise requires (i) terms defined in the introductory paragraphs above shall have the same meanings throughout this Scheme; and (ii) the following words or expressions, wherever used, (including in the introductory paragraphs above) shall have the meanings set out below:

1.1.1. **"Act"** means, the Companies Act, 2013 and read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 shall include any statutory modification or re-enactment thereof for the time being in force, except to the extent the provision which are still applicable as pert the Companies Act, 1956 and/or statutory modification or re-enactment or amendment thereof for the time being in force.

1.1.2. **"Appointed Date"** for the purpose of this scheme and for Income Tax Act, 1961, the "Appointed Date" means the open of business hours on **1st day of April, 2022** or such other date as may be fixed or approved by the Central Government or the

National Company Law Tribunal or such other competent authority may approve;

1.1.3. **"Board of Directors"** or **"Board"** shall mean the Board of Directors of the Transferor Companies or the Transferee Company, as the case may be, and shall include a duly constituted/ to be constituted committee(s) thereof;

1.1.4. **"Central Government"** shall mean such competent authority to which powers are delegated under Section 233 of the Companies Act, 2013;

1.1.5. **"Effective Date"** means the last of the dates on which all conditions, matters and filings referred to in **Clause 17** hereof have been fulfilled or waived and necessary orders, approvals and consents referred to therein have been obtained.

Any reference in the Scheme to **"coming into effect of this Scheme"** or **"upon the Scheme becoming effective"** shall be a reference to the Effective Date.

1.1.6. **"Governmental Approval"** means and includes any consents, approvals, authorisations, concessions, permits, licenses issued by any Governmental Authority;

1.1.7. **"Governmental Authority"** means any applicable Central, State or local Government, legislative body, regulatory or administrative authority including but not limited to the Securities and Exchange Board of India to the extent that the rules, regulations and standards, requirements, procedures or

orders of such authority, body or other organization have the force of Law;

1.1.8. **"IT Act"** means Income-tax Act, 1961 and rules and regulations made there under and shall include any statutory modification, amendment or re-enactment thereof for the time being in force;

1.1.9. **"Liabilities"** means all debts and liabilities, both present and future comprised in the Undertakings of the Transferor Companies, whether or not provided in the books of accounts or disclosed in the balance sheet of the Transferor Companies, including all secured and unsecured debts, liabilities (including deferred tax liabilities, contingent liabilities), duties and obligations (including under any licenses or permits or schemes of every kind) and undertakings of the Transferor Companies of every kind, nature and description whatsoever and howsoever arising, whether or not raised or incurred or utilized for its business activities and operations along with any charge, Encumbrances created in relation to the same;

1.1.10. **"Record Date"** means shall be the date to be fixed by the Board of the Transferee Company, for the purpose of determining the equity shareholders of each of the Transferor Companies for issue of New Equity Shares [as defined in **Clause 10.1**], pursuant to this Scheme.

1.1.11. **"Registrar of Companies"** means the Registrar of Companies, Ahmedabad.

1.1.12. **"Scheme"** or **"Scheme of Amalgamation"** means this scheme of Amalgamation with or without any modification(s)/amendment(s) approved or imposed or directed by the tribunal.

1.1.13. **"Shareholders"** with reference to the Transferor or Transferee Company means persons holding equity shares in the said Companies in physical or in electronic form and whose names are entered and registered as members in the Register of Members of the said Companies or whose names appear as the beneficial owners of the equity shares in the records of the Depositories, if shares are held in dematerialised form

1.1.14. **"Transferee Company"** means Shivalik Developers and Realty Private Limited (Formally Known as Shrushti Organisors Private Limited), (Company Registration Number: 045025 and having Corporate Identification Number: U45201GJ2004PTC045025), a private limited company, incorporated under the provisions of the Companies Act, 1956 and having its registered office at 1/G.F. Shivalik house, Nr. Aarjav Society, Nr.setelite Police Station, Opp. Satyagruh Chhavani, Ahmedabad GJ 380015 IN.

1.1.15. **"Transferor Companies"** means collectively the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5, Transferor Company 6, Transferor Company 7, Transferor Company 8, Transferor Company 9, Transferor Company 10, Transferor Company 11, Transferor Company 12, and Transferor Company 13;

1.1.16. **"Transferor Company 1"** means Aadarshini Construction Private Limited (Company Registration Number: 053265 and having Corporate Identification Number: U45201GJ2008PTC053265), a private company incorporated on 17th March, 2008, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.17. **"Transferor Company 2"** means Dipali Organisor Private Limited (Company Registration Number: 044411 and having Corporate Identification Number: U45201GJ2004PTC044411) a private company incorporated on 5th July, 2004, under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.18. **"Transferor Company 3"** means S N INFRASPACE PRIVATE LIMITED (Company Registration Number: 042726 and having Corporate Identification Number: U45202GJ2003PTC042726) a private company incorporated on 6th August, 2003, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.19. **"Transferor Company 4"** S N REALTIES PRIVATE LIMITED (Company Registration Number: 046957 and having Corporate Identification Number: U45200GJ2005PTC046957) a private company incorporated on 20th October, 2005, under the provisions of Companies Act, 1956 and having its registered

office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad; Gujarat 380015, India.

1.1.20. **"Transferor Company 5"** means S N REALTY CONSTRUCTION PRIVATE LIMITED (Company Registration Number: 046981 and having Corporate Identification Number: U45200GJ2005PTC046981) a private company incorporated on 25th October, 2005, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.21. **"Transferor Company 6"** means SHARANAM CONSTRUCTION PRIVATE LIMITED (Company Registration Number: 042748 and having Corporate Identification Number: U45201GJ2003PTC042748) a private company incorporated on 11th August, 2003, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.22. **"Transferor Company 7"** means SHASWAT REALTIES PRIVATE LIMITED (Company Registration Number: 044512 and having Corporate Identification Number: U45201GJ2004PTC044512) a private company incorporated on 26th July, 2004, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.23. **"Transferor Company 8"** means SHIVALIK DEVELOPERS PRIVATE LIMITED (Company Registration Number: 049089 and having Corporate Identification Number: U45200GJ2006PTC049089) a private company incorporated on 15th September 2006, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.24. **"Transferor Company 9"** means SHIVALIK HOME SERVICES PRIVATE LIMITED (formally known as SPENDOR REALTY PRIVATE LIMITED having Registration Number: 072679 and having Corporate Identification Number: U70101GJ2012PTC072679) a private company incorporated on 12th November, 2012, under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.25. **"Transferor Company 10"** means SHIVALIK INFRA-PROJECTS PRIVATE LIMITED (Company Registration Number: 053044 and having Corporate Identification Number: U45209GJ2008PTC053044) a private company incorporated on 26th February, 2008, under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.26. **"Transferor Company 11"** means SHIVALIK PLAZA PRIVATE LIMITED (Company Registration Number: 053161 and having

Corporate Identification Number: U45201GJ2008PTC053161) a private company incorporated on 5th March, 2008, under the provisions of Companies Act, 1956 and having its registered office at Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.27. **"Transferor Company 12"** means SHIVALIK REALTY STHAPTYA PRIVATE LIMITED (Company Registration Number: 051859 and having Corporate Identification Number: U45201GJ2007PTC051859) a private company incorporated on 1st October, 2007, under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.28. **"Transferor Company 13"** means TARAL PROPERTIES PRIVATE LIMITED (Company Registration Number: 042727 and having Corporate Identification Number: U45203GJ2003PTC042727) a private company incorporated on 6th August, 2003, under the provisions of Companies Act, 1956 and having its registered office at 1/G.F. Shivalik House, Nr. Aarjav Society Nr. Satellite Police Station, Jodhpur Ahmedabad, Gujarat 380015, India.

1.1.29. **"Tribunal"** means the Hon'ble National Company Law Tribunal, Bench at Ahmedabad, which has jurisdiction in relation to the Companies.

1.1.30. **"Tribunal Order(s)"** means order(s) passed by the Tribunal sanctioning this Scheme and/or any Tribunal order(s) for

extension of time or condonation of delay in filing of the requisite forms with the RoC in relation to the Scheme, if applicable.

1.1.31. **"Undertakings of the Transferor Companies"** each of the Transferor Companies and includes all businesses, undertakings, assets, properties, investments, and liabilities, if any, of each of the Transferor Companies, of whatsoever nature and kind and wherever situated, on a going concern basis, which shall include:

1.1.31.1. All the assets, properties, business and commercial rights or any other assets of the Transferor Companies, whether appearing in the Financial Statements or not, as on the Appointed Date (hereinafter referred to as **"the Assets"**);

1.1.31.2. All liabilities including, without being limited to, secured and unsecured debts (whether in Indian rupees or foreign currency), sundry creditors, liabilities (including contingent liabilities), duties and obligations of the Transferor Companies, of every kind, nature and description whatsoever and howsoever arising, raised or incurred or utilised (hereinafter referred to as **"the Liabilities"**);

1.1.31.3. Without prejudice to the generality of sub-clause (1.1.31.1) above, the undertaking of the Transferor Companies shall include without being limited to all the plant and machinery, equipment, buildings and

structures, offices, residential and other premises, sundry debtors, furniture, fixtures, office equipments, appliances, accessories, depots, deposits, all stocks, assets, investments of all kinds (including shares, scripts, stocks, bonds, debenture stocks, units), and interests in its subsidiaries, cash balances or deposits with banks, loans, advances, disbursements, contingents rights or benefits, book debts, receivables, actionable claims, earnest moneys, advances or deposits paid by the Transferor Companies, financial assets, leases (including lease rights), hire purchase contracts and assets, lending contracts, rights and benefits under any agreement, benefit of any security arrangements or under any guarantees, reversion, powers, municipal permissions, tenancies in relation to the office and/or residential properties for the employees or other persons, guest houses, godowns, warehouses, licenses, fixed and other assets, trade and service names and marks, patents, copyrights, and other intellectual property right rights of any nature whatsoever, know how, goodwill, rights to use and avail of telephones, telexes, facsimile, email, internet, leased line connections and installations, utilities, electricity and other services, reserves, provisions, funds, benefits of assets or properties or other interest held in trust, registrations, contracts, engagements, arrangements of all kind, privileges and all other rights including, title, interests, other benefits

(including tax benefits), easements, privileges, liberties, mortgages, hypothecations, pledges or other security interests created in favour of the Transferor Companies and advantages of whatsoever nature, belonging to or in the ownership, power or possession and in the control of or vested in or granted in favour of or enjoyed by the Transferor Companies or in connection with or relating to the Transferor Companies and all other interests of whatsoever nature belonging to or in the ownership, power, possession or the control of or vested in or granted in favour of or held for the benefit of or enjoyed by the Transferor Companies.

1.1.31.4. All agreements, rights, contracts, entitlements, permits, licenses, approvals, authorisations, concessions, consents, quota rights, engagements, arrangements, authorities, allotments, security arrangements (to the extent provided herein), benefits of any guarantees, reversions, powers and all other approvals of every kind, nature and description whatsoever relating to the business activities and operations of the Transferor Companies.

1.1.31.5. All records, files, papers, computer programs, manuals, data, catalogues, sales material, lists of customers and suppliers, other customer information and all other records and documents

relating to the business activities and operations of the Transferor Companies.

1.1.31.6. All quotas, rights, entitlements, export/import incentives and benefits including advance licenses, bids, tenders (at any stage as it may be), letters of intent, expressions of interest, development rights (whatsoever vested or potential and whether under agreements or otherwise), subsidies, tenancies in relation to office, benefit of any deposits privileges, all other rights receivables, powers and facilities of every kind, nature and description whatsoever, right to use and avail of telephones, telexes, facsimile connections and installations, utilities, electricity and other services, provisions and benefits of all agreements, contracts and arrangements, including technological licensing agreements, and all other interests in connection with or relating thereto.

1.1.31.7. All brand names, trademarks, trade names, patents and domain names, the intellectual properties, filings, dossiers copyrights, industrial designs, trade secrets, know-how; data, technology, methodology, techniques and all other interests exclusively relating to the goods or services being dealt with by the Transferor Companies.

1.1.31.8. All tax credits, including CENVAT credits, refunds; reimbursements, claims, exemptions, benefits under service tax laws, value added tax, goods and

service tax, purchase tax, sales tax or any other duty or tax or cess or imposts under central or state law including sales tax deferrals, advance taxes, tax deducted at source, right to carry forward and set-off unabsorbed losses, if any, depreciation, deductions and benefits under the Income-tax Act, 1961.

1.1.31.9. All employees of the Transferor Companies, if any.

1.1.31.10. All reserves, provisions and funds, books, records, files, papers, engineering and process information, software licences, test reports, records of standard operating procedures, computer programs along with their licences, drawings, manuals, data, databases catalogues, quotations, sales and advertising materials, dossiers, product master cards, lists of present and former customers and suppliers, customer credit information, customer pricing information and other records, whether in physical form or electronic form.

1.1.31.11. All rights to use and avail telephone, facsimile, e-mail, internet, leased line connections an installations, utilities, electricity and other services. And

1.1.31.12. All Proceedings involving the Transferor Companies.

It is intended that the definition of 'Undertakings of the Transferor Companies' under this Clause would enable the transfer of all property, assets, rights, duties, licenses, Employees and Liabilities of the Transferor Companies into the Transferee Company pursuant to this Scheme.

1.2. All terms and words used but not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Companies Act, and other Applicable Laws, as the case may be or any statutory modification or re-enactment thereof for the time being in force.

1.3. References to any law or legislation or regulation shall include amendment(s), circulars, notifications, clarifications, or supplement(s) to, or replacement or amendment of, that law or legislation or regulation.

1.4. References to any of the terms 'taxes', 'duty', 'levy', 'cess' in the Scheme shall be construed as reference to all of them whether jointly or severally.

1.5. Any reference to any statute or statutory provision shall include:

1.5.1. all subordinate legislations made from time to time under that provision (whether or not amended, modified, re-enacted or consolidated from time to time) and any retrospective amendment; and

1.5.2. such provision as from time to time amended, modified, re-enacted or consolidated (whether before or after the date of this Scheme) to the extent such amendment, modification, re-enactment or consolidation applies or is capable of applying to the transaction entered into under this Scheme and (to the

extent liability there under may exist or can arise) shall include any past statutory provision (as amended, modified, re-enacted or consolidated from time to time) which the provision referred to has directly or indirectly replaced.

1.6. Words denoting the singular shall include the plural and words denoting any gender shall include all genders. Words of either gender shall be deemed to include all the other genders.

1.7. Any references in this Scheme to "upon this Scheme becoming effective" or "upon coming into effect of this Scheme" or "upon the Scheme coming into effect" or "effectiveness of the Scheme" shall be construed to be a reference to the Effective Date.

1.8. Headings, subheadings, titles, subtitles to clauses, sub-clauses and paragraphs are for information only and shall not form part of the operative provisions of this Scheme or the schedules hereto and shall be ignored in construing the same.

1.9. Words directly or indirectly mean directly or indirectly through one or more intermediary Persons or through contractual or other legal arrangements, and direct or indirect have the correlative meanings.

1.10. The words "include" and "including" are to be construed without limitation.

1.11. The terms "hereof", "herein", "hereby", "hereto" and derivative or similar words shall refer to this entire Scheme or specified Clauses of this Scheme, as the case may be.

1.12. Any reference to the Preamble, Recital, Clause or Schedule shall be a reference to the preamble, or recital, clause or schedule of this Scheme.

1.13. The Schedules hereto shall form an integral part of this Scheme.

2. DATE OF TAKING EFFECT

2.1. The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the Tribunals shall be effective from the Appointed Date but shall be operative from the Effective Date.

3. SHARE CAPITAL

Transferor Companies:

3.1. The authorized, issued, subscribed and paid-up share capital of the Transferor Companies are as follow:

3.1.1. The authorized, issued, subscribed and paid-up share capital of the **Transferor Company 1 (i.e. AADARSHINI CONSTRUCTION PRIVATE LIMITED)** as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
1,50,000 Equity Shares of Rs. 10 each	15,00,000
TOTAL	15,00 ,000

Issued, Subscribed and Paid up Share Capital	
1,21,000 Equity Shares of Rs.10 each Fully Paid Up	12,10,000
TOTAL	12,10,000

There has been no change in the capital structure of **ADPL** subsequent to the above date of approving of the Scheme by the Board of Directors.

3.1.2. The authorized, issued, subscribed and paid-up share capital of the **Transferor Company 2 (i.e. DIPALI ORGANISOR PRIVATE LIMITED)** as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	1,00,000
Issued, Subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

There has been no change in the capital structure of **DOPL** subsequent to the above date of approving of the Scheme by the Board of Directors

3.1.3. The authorized, issued, subscribed and paid-up share capital of the **Transferor Company 3 (i.e. S N INFRASPACE PRIVATE LIMITED)** as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	1,00,000
Issued, Subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

There has been no change in the capital structure of **DOPL** subsequent to the above date of approving of the Scheme by the Board of Directors

3.1.4. The authorized, issued, subscribed and paid-up share capital of the **Transferor Company 4 (i.e. S N REALTIES PRIVATE LIMITED)** as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	1,00,000
Issued, Subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

There has been no change in the capital structure of **SNRPL** subsequent to the above date of approving of the Scheme by the Board of Directors

3.1.5. The authorized, issued, subscribed and paid-up share capital of the Transferor Company 5 (i.e. S N REALTY CONSTRUCTION PRIVATE LIMITED) as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	1,00,000
Issued, Subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

There has been no change in the capital structure of SNRCPL subsequent to the above date of approving of the Scheme by the Board of Directors

3.1.6. The authorized, issued, subscribed and paid-up share capital of the Transferor Company 6 (i.e. SHARANAM CONSTRUCTION PRIVATE LIMITED) as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	1,00,000
Issued, Subscribed and Paid up Share Capital	

10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

There has been no change in the capital structure of **SCPL** subsequent to the above date of approving of the Scheme by the Board of Directors

3.1.7. The authorized, issued, subscribed and paid-up share capital of the **Transferor Company 7 (i.e. SHASWAT REALTIES PRIVATE LIMITED)** as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	1,00,000
Issued, Subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

There has been no change in the capital structure of **SRPL** subsequent to the above date of approving of the Scheme by the Board of Directors

3.1.8. The authorized, issued, subscribed and paid-up share capital of the **Transferor Company 8 (i.e. SHIVALIK DEVELOPERS PRIVATE LIMITED)** as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in

	Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	**1,00,000**
Issued, Subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	**1,00,000**

There has been no change in the capital structure of **SDPL** subsequent to the above date of approving of the Scheme by the Board of Directors

3.1.9. The authorized, issued, subscribed and paid-up share capital of the **Transferor Company 9 (i.e. SHIVALIK HOME SERVICES PRIVATE LIMITED)** as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	**1,00,000**
Issued, Subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	**1,00,000**

There has been no change in the capital structure of **SHSPL** subsequent to the above date of approving of the Scheme by the Board of Directors

3.1.10. The authorized, issued, subscribed and paid-up share capital of the **Transferor Company 10 (i.e. SHIVALIK INFRA-PROJECTS PRIVATE LIMITED)** as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	1,00,000
Issued, Subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

There has been no change in the capital structure of **SIPPL** subsequent to the above date of approving of the Scheme by the Board of Directors.

3.1.11. The authorized, issued, subscribed and paid-up share capital of the **Transferor Company 11 (i.e. SHIVALIK PLAZA PRIVATE LIMITED)** as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	1,00,000
Issued, Subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

There has been no change in the capital structure of **SPPL** subsequent to the above date of approving of the Scheme by the Board of Directors.

3.1.12. The authorized, issued, subscribed and paid-up share capital of the **Transferor Company 12 (i.e. SHIVALIK REALTY STHAPTYA PRIVATE LIMITED)** as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	1,00,000
Issued, Subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

There has been no change in the capital structure of **SRSPL** subsequent to the above date of approving of the Scheme by the Board of Directors.

3.1.13. The authorized, issued, subscribed and paid-up share capital of the **Transferor Company 13 (i.e. TARAL PROPERTIES PRIVATE LIMITED)** as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000

TOTAL	1,00,000
Issued, Subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

There has been no change in the capital structure of TPPL subsequent to the above date of approving of the Scheme by the Board of Directors.

Transferee Company

3.2. The authorized, issued, subscribed and paid-up share capital of the Transferee Company (i.e. **SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED**) are as follow:

3.2.1. The authorized, issued, subscribed and paid-up share capital of the Transferee Company as per the audited Balance Sheet dated 31.03.2021 is as under:

Share Capital	Amount in Rs.
Authorized Share Capital	
1,00,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	1,00,000
Issued, Subscribed and Paid up Share Capital	
1,00,000 Equity Shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

There has been no change in the capital structure of SDRPL (i.e. **Transferee Company**) subsequent to the above date of approving of the Scheme by the Board of Directors.

PART II

4. PROVISIONS RELATING TO AMALGAMATION

4.1. Upon coming into effect of this Scheme, and subject to the provisions of this Scheme, in relation to the mode of transfer and vesting, the Undertakings of the Transferor Companies shall, without any further act, instrument, deed, matter or thing, be and stand transferred to and vested in and/or be deemed to be transferred to and vested in the Transferee Company as a going concern so as to become on and from the Appointed Date, the estate, assets, rights, title, interests and authorities of the Transferee Company, pursuant to the provisions contained in Sections 230 to 232 and other applicable provisions, if any, of the Act and in accordance with the provisions of Section 2(1B) of the Income-tax Act, 1961.

4.2. Without prejudice to **Clause 4.1** above, in respect of such of the assets and properties of the Transferor Companies, as are movable in nature or incorporeal property or are otherwise capable of transfer by delivery or possession or by endorsement and/or delivery, the same shall stand so transferred by each of the Transferor Companies upon the coming into effect of this Scheme, and shall, become the assets and properties of the Transferee Company with effect from the Appointed Date pursuant to the provisions of Sections 230 to 232 and other applicable provisions, if any, of the Act, without requiring any deed or instrument of conveyance for transfer of the same.

4.3. All other movable properties in respect of such of the assets of the Undertakings of the Transferor Companies (other than those referred to in **Clause 4.2** above), including investment in shares and any other

securities, if any, sundry debtors, outstanding loans and advances, recoverable in cash or in kind or for value to be received, bank balances and deposits, with government, semi-government, local and other authorities and bodies, customers and other persons, shall without any further act, instrument or deed, become the property of the Transferee Company, and the same shall be deemed to have been transferred by way of delivery of possession of the respective documents in this regard.

4.4. All immovable properties of the Transferor Companies, if any, including land together with the buildings and structures standing thereon and rights and interests in immovable properties of the Transferor Companies, if any, whether freehold or leasehold or otherwise and all documents of title, rights and easements in relation thereto shall be vested in and/or be deemed to have been vested in the Transferee Company, without any further act or deed done or being required to be done by the Transferor Companies and/or the Transferee Company. The Transferee Company shall be entitled to exercise all the rights and privileges attached to the aforesaid immovable properties and shall be liable to pay appropriate rent, rates and taxes and fulfil all obligations in relation to or as applicable to such immovable properties. The mutation or substitution of the title to the immovable properties shall, upon the Scheme becoming effective, be made and duly recorded in the name of the Transferee Company by the appropriate authorities pursuant to the sanction of this Scheme by the Tribunal in accordance with the terms hereof.

4.5. Without prejudice to the generality of **Clause 4.1** above, upon the coming into effect of this Scheme, all the assets, estate, rights, title, interest, etc. which are acquired by or vested in the Transferor Companies prior to the Effective Date, shall be deemed to be and shall become the assets;

estate, rights, title, interests, etc. of the Transferee Company, and shall under the provisions of Sections 230 to 232 and other applicable provisions, if any, of the Act, be and stand transferred to, and vested in, or be deemed to have been transferred to, and vested in the Transferee Company upon the coming into effect of this Scheme, without any further act, instrument, deed, matter or thing be made, done or executed.

4.6. Upon the coming into effect of this Scheme and with effect from the Appointed Date, all debts, liabilities (including contingent liabilities), duties and obligations, whether provided for or not in the books of account or disclosed in the balance sheet of the Transferor Companies shall be deemed to be the debts, liabilities, contingent liabilities, duties and obligations of the Transferee Company and the Transferee Company shall, and undertake to meet, discharge and satisfy the same in terms of their respective terms and conditions, if any. It is hereby clarified that it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, liabilities, duties and obligations have arisen in order to give effect to the provisions of this clause.

All loans, advances, inter-company balances and other obligations due between the Transferor Companies and between the Transferor Companies and the Transferee Company, if any, shall stand cancelled and shall have no effect.

4.7. All registrations, goodwill, licences, intellectual property rights, if any, appertaining to the Transferor Companies shall stand transferred to and vested in the Transferee Company.

4.8. All approvals, consents, exemptions, registrations, no objection certificates, permits, quotas, rights, entitlements, licenses (including the licenses granted by any governmental, statutory or regulatory bodies for the purpose of carrying on its business or in connection therewith), and certificates of every kind and description whatsoever in relation to the Transferor Companies, or to the benefit of which the Transferor Companies may be eligible/entitled, and which are subsisting or having effect immediately before the Effective Date, shall be in full force and effect in favour of the Transferee Company and may be enforced as fully and effectually as if, instead of the Transferor Companies, the Transferee Company had been a party or beneficiary or obligor thereto. It is hereby clarified that if the consent of any third party or authority is required to give effect to the provisions of this clause, the said third party or authority shall make and duly record the necessary substitution/ endorsement in the name of the Transferee Company, pursuant to the sanction of this Scheme by the Tribunal, and upon this Scheme becoming effective in accordance with the terms hereof. For this purpose, the Transferee Company shall file appropriate applications/documents with relevant authorities concerned for information and record purposes.

4.9. All taxes (including but not limited to advance tax, tax deducted at source, minimum alternate tax, any tax credits, taxes withheld/paid, service tax, value added tax, etc.) payable by or refundable to the Transferor Companies, including all or any refunds or claims shall be treated as the tax liability or refunds/claims, etc., as the case may be, of the Transferee Company, and any tax incentives, advantages, privileges, exemptions, credits, holidays, remissions, reductions, etc., as would have been available to the Transferor Companies, shall upon the Scheme becoming effective, be available to the Transferee Company.

4.10. Upon the Scheme becoming effective and with effect from the Appointed Date, the Transferee Company shall be entitled to claim refunds or credits, with respect to taxes paid by, for, or on behalf of, the Transferor Companies under applicable laws, including income tax, minimum alternate tax, service tax or any other tax, whether or not arising due to any inter se transaction, even if the prescribed time limits for claiming such refunds or credits have lapsed.

4.11. Upon the Scheme becoming effective, any advance tax, self-assessment tax, minimum alternate tax and/or TDS credit available or vested with the Transferor Companies, shall be treated as advance tax paid by the Transferee Company and shall be available to the Transferee Company for set-off against its liability under the Income-tax Act, 1961 and any excess tax so paid shall be eligible for refund together with interest. Any TDS certificates issued by the Transferee Company to, or for the benefit of, the Transferor Companies under the Income-tax Act, 1961 with respect to the inter se transactions, if any, would be available to the Transferee Company to seek refund of from the tax authorities in compliance with law. Further, TDS deposited, TDS certificates issued or TDS returns filed by the Transferor Companies on transactions other than inter se transactions during the period before the Effective Date shall continue to hold good as if such TDS amounts were deposited, TDS certificates were issued and TDS returns were filed by the Transferee Company. Any TDS deducted by, or on behalf of, the Transferor Companies on inter se transactions, if any, will be treated as advance tax deposited by the Transferee Company.

4.12. Provided that upon the Scheme becoming effective, the Transferee Company is also expressly permitted to revise its income tax returns, withholding tax returns, service tax returns and any other statutory

returns and filings under the tax laws, notwithstanding that the period of filing / revising such return may have lapsed, to obtain TDS certificates, including TDS certificates relating to transactions between the Transferor Companies and the Transferee Company, if any, and to claim refunds, advance tax, and withholding tax credits, etc., pursuant to the provisions of this Scheme.

4.13. On and from the Effective Date, and thereafter, the Transferee Company shall be entitled to operate all bank accounts of the Transferor Companies and realize all monies and complete and enforce all pending contracts and transactions and to accept stock returns and issue credit notes in respect of the Transferor Companies in the name of the Transferor Companies in so far as may be necessary until the transfer of rights and obligations of the Transferor Companies to the Transferee Company under this Scheme have been formally given effect to under such contracts and transactions.

4.14. For avoidance of doubt and without prejudice to the generality of the applicable provisions of the Scheme, it is clarified that with effect from the Effective Date and till such time that the name of the bank accounts of each of the Transferor Companies have been replaced with that of the Transferee Company, the Transferee Company shall be entitled to operate the bank accounts of the Transferor Companies in the name of the Transferor Companies in so far as may be necessary. All cheques and other negotiable instruments, payment orders received or presented for encashment which are in the name of the Transferor Companies after the Effective Date shall be accepted by the bankers of the Transferee Company and credited to the account of the Transferee Company, if presented by the Transferee Company. The Transferee Company shall be allowed to maintain bank accounts in the name of the Transferor

Companies for such time as may be determined to be necessary by the Transferee Company for presentation and deposition of cheques and pay orders that have been issued in the name of the Transferor Companies. It is hereby expressly clarified that any legal proceedings by or against the Transferor Companies in relation to the cheques and other negotiable instruments, payment orders received or presented for encashment which are in the name of the Transferor Companies shall be instituted, or as the case maybe, continued by or against the Transferee Company after the coming into effect of the Scheme.

4.15. The Transferee Company, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required under any law or otherwise, execute appropriate deeds, confirmations, writings or notices with, or in favour of, any other party to any contract or arrangement to which the Transferor Companies are the parties or any writings as may be necessary to be executed in order to give formal effect to the provisions of the Scheme. The Transferee Company shall, under the provisions of the Scheme, be deemed to be authorised to execute any such writings on behalf of the Transferor Companies and to implement or carry out all such formalities or compliance referred to above for and on behalf of the Transferor Companies.

5. LEGAL PROCEEDINGS

5.1. Any legal proceedings, including quasi-judicial, arbitral and other administrative proceedings ("Proceedings"), if any, relating to the Transferor Companies, whether by or against the Transferor Companies, shall not abate, be discontinued or in any way prejudicially affected by reason of the amalgamation of the Transferor Companies or of anything contained in this Scheme, but the Proceedings shall continue and any

prosecution shall be enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued, prosecuted and/or enforced by or against the Transferor Companies, as if this Scheme had not been implemented.

5.2. The Transferee Company undertakes to have all Proceedings referred to in Clause 5.1 above initiated by or against the Transferor Companies, transferred into its name and to have such proceedings continued, prosecuted and enforced by or against the Transferee Company, as the case may be.

6. CONTRACTS, DEEDS, BONDS AND OTHER INSTRUMENTS

6.1. Upon the coming into effect of this Scheme and with effect from the Appointed Date, and subject to the provisions of this Scheme, all contracts, deeds, bonds, agreements, schemes, arrangements, understandings whether written or oral and other instruments, if any, of whatsoever nature to which the Transferor Companies are a party or to the benefit of which the Transferor Companies may be eligible and which are subsisting or having effect immediately before the Effective Date, shall continue in full force and effect by or against or in favour, as the case may be, of the Transferee Company and may be enforced by or against the Transferee Company, as fully and effectively as if, instead of the Transferor Companies, the Transferee Company had been a party or beneficiary or obligee thereto or thereunder.

6.2. Notwithstanding the fact that the vesting of the Undertakings of the Transferor Companies occurs by virtue of this Scheme itself, the Transferee Company may, at any time after the coming into effect of this Scheme, in accordance with the provisions hereof, if so required, under

any law or otherwise, take such actions and execute deeds (including deeds of adherence), confirmations or other writings or tripartite arrangements with any party to any contract or arrangement to which the Transferor Companies are the parties or any writings as may be necessary to be executed in order to give formal effect to the above provisions. The Transferee Company shall, under the provisions of this Scheme, be deemed to be authorized to execute any such writings on behalf of the Transferor Companies, and to carry out or perform all such formalities or compliances referred to above on the part of the Transferor Companies to be carried out or performed.

7. EMPLOYEES

7.1. Upon the coming into effect of this Scheme, all the employees of the Transferor Companies as on the Effective Date, if any, shall become employees of the Transferee Company, on such terms and conditions as are no less favourable than those on which they are currently engaged by the Transferor Companies, without any interruption or break in service as a result of this amalgamation and transfer. With regard to provident fund, gratuity, employees' state insurance, leave encashment and any other special scheme or benefits created or existing for the benefit of such employees of the Transferor Companies, the Transferee Company shall stand substituted for the Transferor Companies for all purposes whatsoever, upon this Scheme becoming effective, including with regard to the obligation to make contributions to the relevant authorities, such as the Regional Provident Fund Commissioner or to such other funds maintained by the Transferor Companies, in accordance with the provisions of applicable laws or otherwise, if any. It is hereby clarified that upon this Scheme becoming effective, the aforesaid benefits or schemes shall continue to be provided to the transferred employees and the

services of all the transferred employees of the Transferor Companies for such purpose shall be treated as having been continuous.

7.2. With regard to any provident fund, gratuity fund, superannuation fund or other special funds created or existing for the benefit of such employees of the Transferor Companies, if any, it is the aim and intent of the scheme that all the rights, duties, powers and obligations of the Transferor Companies, in relation to such schemes or funds shall become those of the Transferee Company. Upon the Scheme becoming effective, the Transferee Company shall stand substituted for the Transferor Companies for all purposes whatsoever relating to the obligation to make contributions to the said funds in accordance with the provisions of such schemes or funds in the respective trust deeds or other documents. Any existing provident fund, gratuity fund and superannuation fund trust, if any, created by the Transferor Companies for its employees shall be continued for the benefit of such employees on the same terms and conditions until such time that they are transferred to the relevant funds of the Transferee Company. It is clarified that the services of all employees of the Transferor Companies transferred to the Transferee Company will be treated as having been continuous and uninterrupted for the purpose of the aforesaid scheme or funds.

7.3. The Transferee Company undertakes to continue to abide by any agreement(s)/ settlement(s) entered into with any labour unions/ employees by the Transferor Companies, if any. The Transferee Company agrees that for the purpose of payment of any retrenchment compensation, gratuity and other terminal benefits, the past services of such employees, if any, with the Transferor Companies, as the case may be, shall also be taken into account, and agrees and undertakes to pay the same as and when payable.

8. **BUSINESS AND PROPERTY IN TRUST AND CONDUCT OF THE BUSINESS FOR THE TRANSFEREE COMPANY**

8.1. With effect from the Appointed Date and up to and including the Effective Date, the Transferor Companies shall carry on their businesses with reasonable diligence and business prudence.

8.2. With effect from the Appointed Date and upto and including the Effective Date:

8.2.1. each of the Transferor Companies shall carry on and be deemed to have carried on all their businesses and activities and shall hold and stand possessed of and shall be deemed to hold and stand possessed of all their respective estates, assets, rights, title, interest, authorities, contracts, investments and strategic decisions for and on account of, and in trust for, the Transferee Company;

8.2.2. all profits and income accruing or arising to the Transferor Companies, and losses and expenditure arising or incurred by them (including taxes, if any, accruing or paid in relation to any profits or income) for the period commencing from the Appointed Date shall, for all purposes, be treated as and be deemed to be the profits, income, losses or expenditure (including taxes), as the case may be, of the Transferee Company;

8.2.3. any of the rights, powers, authorities or privileges exercised by the Transferor Companies shall be deemed to have been

exercised by the Transferor Companies for and on behalf of, and in trust for and as an agent of the Transferee Company. Similarly, any of the obligations, duties and commitments that have undertaken or discharged by the Transferor Companies shall be deemed to have been undertaken for and on behalf of and as an agent for the Transferee Company; and

8.2.4. all taxes (including, without limitation, income tax, minimum alternate tax, tax deducted at source, sales tax, goods and services tax, excise duty, customs duty, service tax, VAT, entry tax, etc.) paid or payable by the Transferor Companies in respect of the operations and/or the profits of the Undertakings of the Transferor Companies before the Appointed Date, shall be on account of the Transferor Companies and, in so far as it relates to the tax payment (including, without limitation, income tax, minimum alternate tax, tax deducted at source, sales tax, goods and services tax, excise duty, customs duty, service tax, VAT, entry tax, etc.), whether by way of deduction at source, advance tax or otherwise howsoever, by the Transferor Companies in respect of the profits or activities or operation of the Undertakings of the Transferor Companies with effect from the Appointed Date, the same shall be deemed to be the corresponding item paid by the Transferee Company, and, shall, in all proceedings, be dealt with accordingly.

9. <u>SAVING OF CONCLUDED TRANSACTIONS</u>

9.1. The transfer and vesting of the Undertakings of the Transferor Companies as per the provisions of this Scheme and the continuance of the legal proceedings by or against the Transferee Company thereof

shall not affect any transactions or legal proceedings already concluded by the Transferor Companies on or before the Effective Date, to that end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Companies as acts, deeds and things done and executed by and on behalf of the Transferee Company.

10. ISSUE OF SHARES

10.1. Upon the Scheme becoming effective, and in consideration of the transfer and vesting of the Undertakings of the Transferor Companies in the Transferee Company in terms of the Scheme, the Transferee Company shall, without any further application, act, instrument or deed, issue and allot to the respective equity shareholders of the Transferor Companies whose names appear in the register of members of the Transferor Companies, on the Record Date, in the ratio of:

10.1.1. 1375 (One Thousand Three Hundred Seventy-Five) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 1 (i.e. Aadarshini Construction Private Limited);

10.1.2. 380 (Three Hundred Eighty) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity

shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 2 (i.e. Dipali Organisor Private Limited);

10.1.3. 4467 (Four Thousand Four Hundred and Sixty Seven) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 3 (i.e. S N Infraspace Private Limited);

10.1.4. 10 (Ten) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 4 (i.e. S N Realties Private Limited);

10.1.5. 238 (Two Hundred Thirty Eight) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 5 (i.e. S N Realty Construction Private Limited);

10.1.6. 4986 (Four Thousand Nine Hundred Eighty Six) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 6 (i.e. Sharanam Construction Private Limited);

10.1.7. 10 (Ten) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 7 (i.e. Shaswat Realties Private Limited);

10.1.8. 10 (Ten) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 8 (i.e. Shivalik Developers Private Limited);

10.1.9. 1 (One) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity

shareholders in the Transferor Company 9 (i.e. Shivalik Home Services Private Limited (Formaly Known As Splendor Realty Private Limited);

10.1.10. 957 (Nine Hundred Fifty Seven) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 10 (i.e. Shivalik Infra-Projects Private Limited);

10.1.11. 10 (Ten) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 11 (i.e. Shivalik Plaza Private Limited);

10.1.12. 825 (Eight Hundred Twenty Five) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every 10 (Ten) equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 12 (i.e. Shivalik Realty Sthaptya Private Limited); and

10.1.13. 428 (Four Hundred Twenty Eight) equity shares in the Transferee Company (i.e. Shivalik Developers And Realty Private Limited (Formaly Known As Shrushti Organisors Private Limited) of Rs.10/- each credited as fully paid-up for every **10 (Ten)** equity shares of Rs.10/- each credited as fully paid up held by such equity shareholders in the Transferor Company 13 (i.e. Taral Properties Private Limited).

10.2. Upon the new equity shares in the Transferee Company being issued and allotted by it to the respective equity shareholders of the Transferor Companies in terms of **Clause 10.1** above (hereinafter referred to as the **"New Equity Shares"**), the equity shares of the Transferor Companies shall be deemed to have been automatically cancelled and be of no effect.

10.3. The New Equity Shares issued pursuant to **Clause 10.1** above shall be issued and allotted in physical form.

10.4. In the event that the aggregate number of the New Equity Shares to be issued by the Transferee Company to the equity shareholders of the Transferor Companies results in a fraction of shares, the Board of the Transferee Company may at their discretion round-off such fraction to the nearest whole number, and thereupon shall issue and allot New Equity Shares to the shareholders of the Transferor Companies.

10.5. The New Equity Shares issued and allotted by the Transferee Company, in terms of **Clause 10.1** above, shall be subject to the provisions of the Memorandum and Articles of Association of the Transferee Company

and shall rank pari passu in all respects with the then existing equity shares of the Transferee Company.

10.6. Approval of the Scheme by the equity shareholders of the Transferee Company shall be deemed to be the due compliance of the provisions of Section 62 and other applicable provisions, if any, of the Act, for the issue and allotment of the New Equity Shares by the Transferee Company to the equity shareholders of the Transferor Companies, as provided in this Scheme.

10.7. The Transferee Company shall not on merger or amalgamation, hold any shares in its own name or in the name of any trust either on its behalf or on behalf of any of its subsidiary or associate company and all such shares shall be cancelled or extinguished on the merger or amalgamation.

11. ACCOUNTING TREATMENT IN THE BOOKS OF THE TRANSFEREE COMPANY

11.1. With effect from the Appointed Date and upon the Scheme becoming effective, the Transferee Company shall follow **"Pooling of Interest Method" for the purpose of amalgamation as defined in AS-14** namely 'Accounting for Amalgamations' issued by ICAI and as notified under Section 133 of the Companies Act, 2013. The Transferee Company shall be entitled to revise Transferor companies tax returns and including any loss, returns, related tax deduction certificates and to claim refund, advance tax credits, etc., accordingly.

11.2. All the assets, liabilities, and reserves in the books of the Transferor Companies shall stand transferred to and vested in the Transferee

Company pursuant to the Scheme and shall be recorded by the Transferee Company at their carrying amounts as appearing in the books of the Transferor Companies, on the Appointed Date.

11.3. The Transferee Company shall credit to its share capital account, the aggregate face value of the new shares issued by it pursuant to **Clause 10.1** of this Scheme.

11.4. Upon coming into effect of this Scheme, the surplus/deficit, if any, of the net value of assets, liabilities and reserves of the Transferor Companies acquired and recorded by the Transferee Company over the sum of the face value of the new shares on merger issued and allotted shall be adjusted in **"Capital Reserve Account"** or **"Goodwill"** in the financial statements of the Transferee Company.

11.5. Inter – Company transactions and balances including loans, advances, receivables or payable inter se amongst the Transferor Companies and the Transferee Company as appearing in t heir books of accounts, if any, shall stand cancelled.

11.6. In case of difference in accounting policies between the Transferor Companies and Transferee Company, the impact of the same till Appointed Date of amalgamation will be quantified and adjusted in the reserves of the Transferee Company to ensure that the financial statements of the Transferee Company reflect the true financial position on the basis of consistent accounting policies.

12. <u>ALTERATION / AMENDMENT TO THE MEMORANDUM OF ASSOCIATION AND ARTICLE OF ASSOCIATION OF TRANSFERR COMPANY</u>

12.1. **CONSOLIDATION OF AUTHORISED SHARE CAPITAL OF THE TRANSFEROR COMPANIES INTO THE TRANSFEREE COMPANY**

12.1.1. As an integral part of the Scheme, and upon the coming into effect of this Scheme, the authorised share capital of the Transferor Companies shall stand transferred to and be amalgamated with the authorised share capital of the Transferee Company, and that the authorised share capital of the Transferee Company shall automatically stand increased, without any further act, instrument or deed on the part of the Transferee Company, without any liability for payment of any additional fees (including fees and charges to the Registrar of Companies, Gujarat) or stamp duty. Consequently, the authorised share capital of the Transferee Company shall be Rs. 28,00,000/- (Rupees Twenty Eight Lakhs only) divided into 2,80,000 (Two Lakhs Eighty Thousand) equity shares of Rs. 10/- (Rupees Ten only) each, without any further act, instrument or deed.

12.1.2. Upon the Scheme becoming effective, the Authorised share capital of Transferor Companies which is as mentioned in the **clause 12.1.1. above will be consolidated with Authorised Share Capital of Transferee Company without any liability for payment of any additional fees (including fees and charges to the Registrar of Companies, Gujarat) or stamp duty**. Further, upon scheme become effective, the Transferee Company will issue shares to the shareholders of the Transferor Companies as mentioned in **clause 10.1 above**, by effect it the Authorized Share Capital of Transferee Company will be increased from Rs. 28,00,000/- (Rupees Twenty Eight Lakhs

only) divided into 2,80,000 (Two Lakhs Eighty Thousand) equity shares of Rs. 10/- (Rupees Ten only) each, to Rs. 29,50,00,000/- (Rupees Twenty Nine Crores Fifty Lakhs only) divided into 2,95,00,000 (Two Crores Ninety Five Lakhs) equity shares of Rs. 10/- (Rupees Ten only) to each without any further act, instrument or deed on the part of the Transferee Company except payment of stamp duty and fees payable to Registrar of Companies, on Additional Increase of the authorized share capital from Rs. 28,00,000/- (Rupees Twenty Eight Lakhs only) divided into 2,80,000 (Two Lakhs Eighty Thousand) equity shares of Rs. 10/- (Rupees Ten only) each, to Rs. 29,50,00,000/- (Rupees Twenty Nine Crores Fifty Lakhs only) divided into 2,95,00,000 (Two Crores Ninety Five Lakhs) equity shares of Rs. 10/- (Rupees Ten only).

12.1.3. Clause V of the Memorandum of Association of the Transferee Company shall, upon the coming into effect of this Scheme and without any further act or deed, be replaced by the following clause:

"The Authorised Share Capital of the Company is Rs. 29,50,00,000/- (Rupees Twenty Nine Crores Fifty Lakhs only) divided into 2,95,00,000 (Two Crores Ninety Five Lakhs) equity shares of Rs. 10/- (Rupees Ten only) each."

12.1.4. The consent of the shareholders of the Transferor Companies and the Transferee Company to the Scheme shall be deemed to be sufficient for purposes of effecting the above and that no further action under section 13 or section 61 or any other applicable provisions of the Act, shall be separately required nor

shall any additional fees (including fees and charges to the Registrar of Companies, Gujarat) or stamp duty be payable by the Transferee Company except for the additional increase of the Authorised Share Capital from Rs. 28,00,000/- (Rupees Twenty Eight Lakhs only) divided into 2,80,000 (Two Lakhs Eighty Thousand) equity shares of Rs. 10/- (Rupees Ten only) each, to Rs. 29,50,00,000/- (Rupees Twenty Nine Crores Fifty Lakhs only) divided into 2,95,00,000 (Two Crores Ninety Five Lakhs) equity shares of Rs. 10/- (Rupees Ten only).

12.2. **CHANGE OF NAME FROM SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED INTO SHIVALIK DEVELOPERS PRIVATE LIMITED AND ALTERATION TO THE NAME CLAUSE:**

12.2.1. Upon the Scheme become effective, name of Transferee Company shall be change in accordance with **section 13 and section 14** of the Companies Act, 2013 and other relevant provisions of the act as applicable without ant act or deed. It is hereby clarified that the consent of shareholders of transferee company to the scheme shall be deemed to be sufficient for the purposes effecting this amendment, and no further resolution(s) under the provisions of the would be required to be separately passed.

12.2.2. Further, upon the scheme becoming effective, the name of Shivalik Developers and Realty Private Limited shall be changed **from " Shivalik Developers and Realty Private Limited" to "Shivalik Developers Private Limited"** in accordance with section 13 of the Companies Act, 2013 and other relevant provisions of the Act as applicable without act or

deed and the name of Shivalik Developers and Realty Private Limited wherever it occurs in the Memorandum of Association shall stand substituted by "Shivalik Developers Private Limited". It is here by certified that the consent of the shareholders of Shivalik Developers and Realty Private Limited to the scheme shall be deemed to be sufficient for the purposes effecting this amendment, and no further resolution(s) under the provisions of the Act would be required to be separately passed.

12.2.3. The Shivalik Developers and Realty Private Limited shall file the requisite forms with the Registrar of Companies and shall take necessary steps to give effect to such change of name as per above clause **12.2.1** and **12.2.2** respectively.

13. VALIDITY OF EXISTING RESOLUTIONS, ETC.

13.1. Upon the coming into effect of this Scheme, the resolutions of the respective Transferor Companies, as are considered necessary by the Board of the Transferee Company, and that are valid and subsisting on the Effective Date, shall continue to be valid and subsisting and be considered as resolutions of the Transferee Company, and if any such resolutions have any monetary limits approved under the provisions of the Act, or any other applicable statutory provisions, then said limits as are considered necessary by the Board of the Transferee Company shall be added to the limits, if any, under like resolutions passed by the Transferee Company and shall constitute the aggregate of the said limits in the Transferee Company.

14. DISSOLUTION OF THE TRANSFEROR COMPANIES

14.1. Upon the coming into effect of this Scheme, the Transferor Companies shall stand dissolved without being wound up, without any further act or deed.

PART III

GENERAL TERMS AND CONDITIONS

15. APPLICATIONS/ PETITIONS TO THE TRIBUNAL AND APPROVALS

15.1. The Companies shall dispatch, make and file all applications and petitions under sections 230 to 232 of the Act and other applicable provisions of the Act before the Tribunal, under whose jurisdiction, the registered offices of the respective Companies are situated, for sanction of this Scheme under the provisions of applicable law, and shall apply for such approvals as may be required under applicable law and for dissolution of the Transferor Companies without being wound up.

16. MODIFICATIONS/AMENDMENTS TO THE SCHEME

16.1. The Companies (by their respective Boards), may jointly and as mutually agreed in writing:

16.1.1. in their full and absolute discretion, assent to any alteration(s) or modification(s) to this Scheme which the Tribunal may deem fit to approve or impose, and/or effect any other modification or amendment jointly and mutually agreed in writing, including, without limitation, any modifications to the accounting treatment set out in the Scheme due to any change in regulatory or compliance requirements being made applicable to the Companies or to the matters set forth in this Scheme, and to do

all acts, deeds and things as may be necessary, desirable or expedient for the purposes of this Scheme;

16.1.2. to give such directions (acting jointly) as they may consider necessary to any question or difficulty arising under this Scheme or in regard to and of the meaning or interpretation of this Scheme or implementation thereof or in any matter whatsoever connected therewith, or to review the position relating to the satisfaction of various conditions of this Scheme and if necessary, to waive any of those (to the extent permissible under applicable law);

16.1.3. in their full and absolute discretion, modify, vary or withdraw this Scheme prior to the Effective Date in any manner at any time; and

16.1.4. to determine whether any asset, liability, employee, proceedings pertains to the Undertakings of the Transferor Companies, or not, on the basis of any evidence that they may deem relevant for this purpose.

16.2. Any modification to the Scheme by any of the Companies, after receipt of sanction by the Tribunal, shall be made only with the prior approval of the Tribunal.

17. CONDITIONS PRECEDENT

17.1. This Scheme is and shall be conditional upon and subject to:

17.1.1. the approval by the respective requisite majority of the shareholders and/or creditors (where applicable) of the Companies in accordance with the Act;

17.1.2. the Tribunal having accorded its sanction to the Scheme; and

17.1.3. certified copies of the order(s) of the Tribunal, sanctioning the Scheme, being filed with the Registrar of Companies, Gujarat, by all the Companies.

18. EFFECT OF NON-RECEIPT OF APPROVALS AND MATTERS RELATING TO REVOCATION / WITHDRAWAL OF THE SCHEME

18.1. In the event of any of the said sanctions and approvals not being obtained and/or the Scheme not being sanctioned by the Tribunal, the Scheme shall become null and void and each Company shall bear and pay its respective costs, charges and expenses for and/or in connection with the Scheme.

18.2. The Companies acting through their respective Board shall each be at liberty to withdraw from this Scheme, (i) in case any condition or alteration imposed by any appropriate authority / person is unacceptable to any of them or (ii) they are of the view that coming into effect of the respective parts to this Scheme could have adverse implications on the respective Companies.

18.3. In the event of revocation/withdrawal under Clauses 18.1 and 18.2 above, no rights and liabilities whatsoever shall accrue to or be incurred inter se the Companies or their respective shareholders or creditors or employees or any other person save and except in respect of any act or

deed done prior thereto as is contemplated hereunder or as to any right, liability or obligation which has arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or in accordance with the applicable law and in such case, each Company shall bear its own costs, unless otherwise mutually agreed.

18.4. If any part of this Scheme is found to be unworkable for any reason whatsoever, the same shall not, subject to the decision of the Companies through their respective Boards, affect the validity or implementation of the other parts and/or provisions of this Scheme.

19. COST, CHARGES AND EXPENSES

19.1. All costs, charges and expenses (including, but not limited to, any taxes and duties, etc.) of the Companies, respectively, in relation to carrying out, implementing and completing the terms and provisions of this Scheme and/or incidental to the completion of this Scheme shall be borne by the Transferee Company.

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AADARSHINI CONSTRUCTION PRIVATE LIMITED
CIN: U45201GJ2008PTC053265
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of AADARSHINI CONSTRUCTION PRIVATE LIMITED (Transferor Company -1) as on date of the order passed by the NCLT sanctioning the scheme) to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold Property:

A. Freehold Land Details: Nil

B. Building Details:

Sr. no	Type of asset	Location	Unit measurement	area
1	Shop -2	Shivalik -5 Rajkot,Gujarat	Sq. Ft	990

C. Other Land Details: Nil

PART-II

Details of Leasehold Property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of Investment:

Sr No.	Particulars
1	Investment In Partnership LLP

B. Other assets:

Sr no.	Particulars
1	Cash and Cash Equivalent
2	Deposits
3	Loans & Advances
4	Other assets

D. Vehicles: Nil

E. Particulars of bank account:

Sr.no	Bank & Branch	Type of account	Account no.
1	Hdfc bank	Current	50200046830690

F. Registration with various authorities:

Sr no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AAICA1212F

For And On Behalf Of Board Of Directors
For Aadarshini Construction Private Limited
(Petitioner/Transferor Company-1)

Taral Satishkumar Shah
Director
DIN:00005375

DIPALI ORGANISOR PRIVATE LIMITED
CIN:U45201GJ2004PTC044411
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of DIPALI ORGANISOR PRIVATE LIMITED (Transferor Company -2) as on date of the order passed by the NCLT sanctioning the scheme) to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold Property:

A. Freehold Land Details: Nil

B. Building Details: Nil

C. Other Land Details: Nil

PART-II

Details of Leasehold Property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of Investment:

Sr No.	Particulars
1	Investment In Partnership LLP

B. Other assets:

Sr No.	Particulars
1	Cash and Cash Equivalent

2	Deposits
3	Loans & Advances
4	Other assets

C. Inventories:

Sr no.	Type of asset	Location	Unit measurement	Area
1	Plot	Vadaj, Ahmedabad-380013	Sq. Ft	6903

D. Vehicles:

Sr No.	Particulars	Registration no.
1	Car	GJ-01-RN-0400

E. Particulars of bank account:

Sr. No.	Bank & Branch	Type of account	Account no.
1	Bank of baroda	Current	78010200002669
2	Hdfc bank	Current	50200036188810

F. Registration with various authorities:

Sr.No.	Name of authority	Nature of registration	Registration number
1	Income tax Dept.	Pan	AACCD0095M
2	GST dept	Gst no.	24AACCD0095M1ZN

For And On Behalf Of Board Of Directors
For Dipali Organisor Private Limited
(Petitioner/Transferor Company-2)

Taral Satishkumar Shah
Director
DIN:000053

S N INFRASPACE PRIVATE LIMITED
CINU45202GJ2003PTC042726
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of S N INFRASPACE PRIVATE LIMITED (Transferor Company – 3) as on date of the order passed by the NCLT sanctioning the scheme to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold Property:

A. Freehold Land Details: Nil

B. Building Details:

Sr no.	Type of asset	Location	Unit measurment	Area
1	Flat D/1/702	Shela , Ahmedabad-380058	Sq. Ft	923
2	Flat D/1/802	Shela , Ahmedabad-380058	Sq. Ft	923
3	Flat H-502	Shela , Ahmedabad-380058	Sq. Ft	923

C. Other Land Details: Nil

PART-II

Details of Leasehold Property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of Investment:

Sr No.	Particulars
1	Investment in Partnership LLP

B. Other assets:

Sr no.	Particulars
1	Cash and Cash Equivalent
2	Loans & Advances
3	Other assets

C. Vehicles: Nil

D. Particulars of bank account:

Sr.no	Bank & Branch	Type of account	Account no.
1	IDBI	Current	79675100011158
2	IDBI	Current	79102000012102

E. Registration with various authorities:

Sr no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AACCR7101A
2	GST dept	Gst no.	24AACCR7101A1Z5

For And On Behalf Of Board Of Directors
For S N Infraspace Private Limited
(Petitioner/Transferor Company-3)

Taral Satishkumar Shah
Director
DIN:00005

S N REALTIES PRIVATE LIMITED
CINU45200GJ2005PTC046957
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of S N REALTIES PRIVATE LIMITED (Transferor Company – 4) as on date of the order passed by the NCLT sanctioning the scheme to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold Property:

A. Freehold Land Details: Nil

B. Building Details: Nil

C. Other Land Details: Nil

PART-II

Details of Leasehold Property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of Investment: Nil

B. Other assets:

Sr no.	Particulars
1	Cash and Cash Equivalent
2	Loans & Advances
3	Other assets

C. Vehicles: Nil

D. Particulars of bank account:

Sr.no	Bank & Branch	Type of account	Account no.
1	Bank of baroda	Current	78010200002733

E. Registration with various authorities:

Sr no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AAJCS3857P

For And On Behalf Of Board of Directors
For S N Realties Private Limited
(Petitioner/Transferor Company-4)

CHITRAK SHAH
DIRECTOR
DIN:0005446

S N REALTY CONSTRUCTION PRIVATE LIMITED
CINU45200GJ2005PTC046981
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of S N REALTY CONSTRUCTION PRIVATE LIMITED (Transferor Company – 5) as on date of the order passed by the NCLT sanctioning the scheme to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold Property:

A. Freehold Land Details: Nil

B. Building Details: Nil

C. Other Land Details: Nil

PART-II

Details of Leasehold Property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A.Particulars of Investment: Nil

B. Other assets:

Sr no.	Particulars
1	Cash and cash equivalent
2	Other assets

C. Vehicles: Nil

D. Particulars of bank account:

Sr.no	Bank & Branch	Type of account	Account no.
1	Bank of baroda	Current	78010200003028

E. Registration with various authorities:

Sr. no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AAJCS3858C
2	GST Dept	Gst no.	24AAJCS3858C1ZD

For And On Behalf Of Board Of Directors
For S N Realty Construction Private Limited
(Petitioner/Transferor Company-5)

Taral Satishkumar Shah
Director
DIN:00005

SHARANAM CONSTRUCTION PRIVATE LIMITED
CIN U45201GJ2003PTC042748
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of SHARANAM CONSTRUCTION PRIVATE LIMITED (Transferor Company-6) as on date of the order passed by the NCLT sanctioning the scheme) to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Short description of Freehold property:

A. Freehold Land Details: Nil

B. Building Details: Nil

C. Other Land Details: Nil

PART-II

Details of Leasehold property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of Investment : Nil

B. Other assets:

Sr no.	Particulars
1	Cash & cash equivalent
2	Deposits
3	Loans & Advances
4	Trade Receivables

C. Inventories:

Sr. No.	Type of Assets	Location	Unit Measurement	Area (carpet area)
1	Flat - 101	Ambali Brts Road, Ahmedabad - 380058	Sq. Mtr	194.98
2	Flat - 102	Ambali Brts Road, Ahmedabad - 380058	Sq. Mtr	194.98
3	Flat - 103	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	195.42
4	Flat - 104	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	185.15
5	Flat - 201	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
6	Flat - 202	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
7	Flat - 203	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	195.42
8	Flat - 204	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	185.15
9	Flat - 301	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
10	Flat - 302	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
11	Flat - 303	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	195.42
12	Flat - 304	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	185.15
13	Flat - 401	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
14	Flat - 402	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
15	Flat - 403	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	195.42
16	Flat - 404	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	185.15
17	Flat - 501	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
18	Flat - 502	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
19	Flat - 503	Ambali Brts Road, Ahmedabad	Sq. Mtr	195.42
20	Flat - 504	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	185.15
21	Flat - 601	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
22	Flat - 602	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
23	Flat - 603	Ambali Brts Road, Ahmedabad	Sq. Mtr	195.42
24	Flat - 604	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	185.15
25	Flat - 701	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
26	Flat - 702	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
27	Flat - 703	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	195.42
28	Flat - 704	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	185.15
29	Flat - 801	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
30	Flat - 802	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
31	Flat - 803	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	195.42

32	Flat - 804	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	185.15
33	Flat - 901	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
34	Flat - 902	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
35	Flat - 903	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	195.42
36	Flat - 904	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	185.15
37	Flat - 1001	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
38	Flat - 1002	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
39	Flat - 1003	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	195.42
40	Flat - 1004	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	185.15
41	Flat - 1101	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
42	Flat - 1102	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	194.98
43	Flat - 1103	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	195.42
44	Flat - 1104	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	185.15
45	Flat - 1201	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	263.9
46	Flat - 1202	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	263.9
47	Flat - 1203	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	264.78
48	Flat - 1204	Ambali Brts Road, Ahmedabad – 380058	Sq. Mtr	252.6

D. Particulars of bank account:

Sr.no	Bank & branch	Type of account	Account no.
1	Bandhan Bank	Current	10210006585856
2	Bank of Baroda	Current	78010200002734
3	Hdfc Bank	Escrow	50200053965261
4	Hdfc Bank	Rera	50200053970991
5	Hdfc Bank	Current	50200053959182

E. Registration with various authorities:

Sr. no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AAICS0533R
2	Goods and Services Dept.	Gst Regi No.	24AAICS0533R2Z0

For And On Behalf Of Board Of Directors
FOR Sharanam Construction Private Limited
(Transferor Company)

Taral Satishkumar Shah
Director
DIN: 00005375

SHASWAT REALTIES PRIVATE LIMITED
CIN U45201GJ2004PTC044512
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of SHASHWAT REALTIES PRIVATE LIMITED (Transferor Company – 7) as on date of the order passed by the NCLT sanctioning the scheme to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold Property:

A. Freehold Land Details: Nil

B. Building Details: Nil

C. Other Land Details: Nil

PART-II

Details of Leasehold Property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of Investment: Nil

B. Other assets:

Sr no.	Particulars
1	Other assets

C. Vehicles: Nil

D. Particulars of bank account:

Sr.no	Bank & Branch	Type of account	Account no.
1	Bank of baroda	Current	3260200001335

E. Registration with various authorities:

Sr no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AAICS6077J

For And On Behalf Of Board Of Directors
For Shashwat Realties Private Ltd
(Petitioner/Transferor Company-7)

Taral Satishkumar Shah
Director
DIN:00005

SHIVALIK DEVELOPERS PRIVATE LIMITED
CIN U45201GJ2003PTC042748
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of SHIVALIK DEVELOPERS PRIVATE LIMITED (Transferor company -8) as on date of the order passed by the NCLT sanctioning the scheme) to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED), Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold property:

A. Freehold Land Details: Nil

B. Building Details: Nil

C. Other Land Details: Nil

PART-II

Details of Leasehold property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of investment: Nil

B. Other assets:

Sr no.	Particulars
1	Cash and cash equivalent
2	Deposits
3	Sundry Debtors
4	Other Assets

C. Inventories:

Sr. No.	Type of Assets	Location	Unit Measurement	Area
1	Shop No 9/10	Vejalpur Gam, Ahmedabad - 389340	Sq .Ft	124
2	Shop No 9/14	Vejalpur Gam, Ahmedabad - 389340	Sq .Ft	132
3	Shop No 9/25	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	138
4	Shop No 9/30	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	137
5	Shop No 9/33	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	169
6	Shop No 9/36	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	168
7	Shop No 9/38	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	136
8	Shop No 9/54	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	142
9	Shop No 9/55	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	146
10	Shop No 9/61	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	142
11	Shop No 9/107	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	147
12	Shop No 9/109	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	147
13	Shop No 9/110	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	147
14	Shop No 9/155	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	136
15	Shop No 9/157	Vejalpur Gam, Ahmedabad – 389340	Sq .Ft	136
16	Shop No 9/159	Vejalpur Gam, Ahmedabad - 389340	Sq .Ft	136

D. Vehicles: Nil

E. Particulars of bank account:

Sr. No	Bank & Branch	Type of account	Account No.
1	Bank Of Baroda	Current	78010200002731

F. Registration with various authorities:

Sr no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AAKCS2101H

For And On Behalf Of Board Of Directors
For Shivalik Developers Private Limited
(Transferor Company -8)

Taral Satishkumar Shah
Director
DIN: 00005375

SHIVALIK HOME SERVICES PRIVATE LIMITED
(Formerly known as Splendor Realty Private Limited)
CIN U70101GJ2012PTC072679
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of SHIVALIK HOME SERVICES PRIVATE LIMITED (FORMERLY KNOWN AS SPLENDOR REALTY PRIVATE LIMITED) (Transferor Company – 9) as on date of the order passed by the NCLT sanctioning the scheme to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold Property:

A. Freehold Land Details: Nil

B. Building Details: Nil

C. other Land Details: Nil

PART-II

Details of Leasehold Property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of Investment: Nil

B. Other assets:

Sr no.	Particulars
1	Other assets

C. Vehicles: Nil

D. Particulars of bank account: Nil

E. Registration with various authorities:

Sr no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AAUCS5501K

For And On Behalf Of Board Of Directors
For Shivalik Home Services Private Limited
(Formerly known as Splendor Realty Private Limited)
(Petitioner/Transferor Company-9)

Taral Satishkumar Shah
Director
DIN:00005

SHIVALIK INFRA-PROJECTS PRIVATE LIMITED
CIN U45209GJ2008PTC053044
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of SHIVALIK INFRA-PROJECTS PRIVATE LIMITED (Transferor Company – 10) as on date of the order passed by the NCLT sanctioning the scheme to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold Property:

A. Freehold Land Details: Nil

B. Building Details: Nil

C. Other Land Details: Nil

PART-II

Details of Leasehold Property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of Investment: Nil

B. Other assets:

Sr no.	Particulars
1	Loans & Advances
2	Other assets

C. Vehicles: Nil

D. Particulars of bank account:

Sr.no	Bank & Branch	Type of account	Account no.
1	Bank of baroda	Current	78010200003108

E. Registration with various authorities:

Sr no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AALCS7260G

For And On Behalf Of Board Of Directors
For Shivalik Infra-Projects Private Limited
(Petitioner/Transferor Company-10)

SHIVALIK INFRA-PROJECTS PVT. LTD. AHMEDABAD

Taral Satishkumar Shah
Director
DIN:00005

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD BENCH

SHIVALIK PLAZA PRIVATE LIMITED
CIN U45201GJ2008PTC053161
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of SHIVALIK PLAZA PRIVATE LIMITED (Transferor Company – 11) as on date of the order passed by the NCLT sanctioning the scheme) to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold Property:

A. Freehold Land Details: Nil

B. Building Details: Nil

C. Other Land Details: Nil

PART-II

Details of Leasehold Property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of Investment: Nil

B. Other assets:

Sr no.	Particulars
1	Sundry Debtors
2	Other assets

C. Vehicles:

Sr No.	Particulars	Registration no.
1	Bike	GJ01PG2938

D. Particulars of bank account:

Sr.no	Bank & Branch	Type of account	Account no.
1	BANK OF BARODA	CURRENT	78010200002672

E. Registration with various authorities:

Sr no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AALCS7816C
2	GST dept.	Gst no.	24AALCS7816C1ZD

For And On Behalf Of Board Of Directors
For Shivalik Plaza Private Limited
(Petitioner/Transferor Company-11)

Taral Satishkumar Shah
Director
DIN:00005

SHIVALIK REALTY STHAPTYA PRIVATE LIMITED
CIN U45201GJ2007PTC051859
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID: account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of SHIVALIK REALTY STHAPTYA PRIVATE LIMITED (Transferor Company – 12) as on date of the order passed by the NCLT sanctioning the scheme to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold Property:

A. Freehold Land Details: Nil

B. Building Details: Nil

C. Other Land Details: Nil

PART-II

Details of Leasehold Property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of Investment: Nil

B. Other assets:

Sr no.	Particulars
1	Cash and Cash Equivalent
2	Loans & Advances
3	Other assets

C. Vehicles: Nil

D. Particulars of bank account:

Sr.no	Bank & Branch	Type of account	Account no.
1	BANK OF BARODA	CURRENT	78010200002732

E. Registration with various authorities:

Sr no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AALCS3562P

For And On Behalf Of Board Of Directors
For Shivalik Realty Sthaptya Private Limited
(Petitioner/Transferor Company-12)

SHIVALIK REALTY STHAPATYA PVT. LTD. AHMEDABAD

Taral Satishkumar Shah
Director
DIN:00005

TARAL PROPERTIES PRIVATE LIMITED
CIN U45203GJ2003PTC042727
Registered Office: Shivalik House, Nr. Aarjav Society Nr. Satelite Police Station, Jodhpur, Ahmedabad GJ 380015 IN
Email ID:account@shivalikgroup.com

SCHEDULE OF ASSETS

Schedule of Assets of TARAL PROPERTIES PRIVATE LIMITED (Transferor Company – 13) as on date of the order passed by the NCLT sanctioning the scheme to be transferred to SHIVALIK DEVELOPERS AND REALTY PRIVATE LIMITED (FORMERLY KNOWN AS SHRUSHTI ORGANISORS PRIVATE LIMITED) Transferee Company, pursuant to the Scheme Sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

PART-I

Description of Freehold Property:

A. Freehold Land Details: Nil

B. Building Details: Nil

C. Other Land Details: Nil

PART-II

Details of Leasehold Property: Nil

PART-III

Description of all current assets, loans, advances, stocks, shares, debentures and other choses in action:

A. Particulars of Investment: Nil

B. Other assets:

Sr no.	Particulars
1	Cash and Cash Equivalent
2	Deposits
3	Loans & Advances
4	Other assets

C. Vehicles: Nil

D. Particulars of bank account:

Sr.no	Bank & Branch	Type of account	Account no.
1	Bank of baroda	Current	78010200002665

E. Registration with various authorities:

Sr. no	Name of authority	Nature of registration	Registration number
1	Income Tax Dept.	Pan	AACCT0150B

For And On Behalf Of Board Of Directors
For Taral Properties Private Limited
(Petitioner/Transferor Company-13)

Taral Satishkumar Shah
Director
DIN:00005